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Justice in Migration

A Liberal Egalitarian Reappraisal

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1. Introduction

The history of humanity is a history of migration. It is replete with mass movements of peoples, sometimes fleeing from persecution and marginalization, more often seeking better opportunities and living conditions. In the 19th century alone, more than 50 million Europeans migrated from the old continent to the Americas, a clear majority of them for economic reasons. Just between 1850 and 1913, about one-fifth of the populations of Norway, Sweden, and the United Kingdom left their home countries. Against this background, it seems startling that with the first immigration restrictions in modern western states, and the invention of passports and visas, the so-called *conventional view*[1] on immigration became so widely accepted, both publicly and academically, throughout the better part of the 20th century. According to this view, states not only have an interest but an absolute right to control immigration and determine how many and especially which groups of immigrants are given admission to enter the country.

In an extreme reading of this view, states are not only authorized to pick immigrants based on their education, skills and other assets with the aim to promote national interests, but they can ban potential immigrants from entering the country for discriminatory reasons such as religion and race. The legal manifestation of this extreme view is expressed by historical policies such as the *White Australia Policy* that came to fruition in 1901 and was finally dismantled in 1973.[2] This policy, implemented by the *Immigration Restriction Act*, clearly favored immigration of Caucasians over Asian, mainly Chinese immigrants and was defended with the words of Alexander Downer, a former Australian minister of immigration as follows:

> "We seek to create a homogenous nation. Can anyone reasonably object to that? Is not this, the elementary right of every government, to decide the composition of the nation? It is just the same prerogative as the head of a family exercises as to who is to live in his own house."[3]

Until the current US government issued an executive order to suspend the entry of people from seven Muslim countries, such outright discriminatory policies appeared to be abandoned in most liberal democracies. Moreover, certain regions such as the European Union witness substantially increased freedom of movement. Nevertheless, south-north migration remains severely restricted by rigid immigration policies admitting only a small number of those willing to migrate and showing the tendency to make the positive contribution of prospective immigrants a prerequisite for admission. Given continuous efforts of people to enter wealthy

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[1] This terminology is introduced by Joseph Carens in Carens, Joseph. "Immigration and Citizenship." In *Values and Ethics for the 21st Century*, by BBVA, 103-136. BBVA, 2011.

[2] Other examples are the *Chinese Exclusion Act* established in 1882 in the United States and the *Chinese Immigration Act* established in 1885 in Canada.

[3] Alexander Downer quoted in Goodin, Robert E. *Protecting the Vulnerable: A Re-Analysis of our Social Responsibilities.* Chicago: University of Chicago Press, 1985, Here:p.155.

democracies, several states enforce restrictions by closing and protecting their borders. This closure causes significant human suffering and fatal casualties.[4]

Against the widely accepted view, that there need to be at least some borders, several liberal scholars argue for an unconditional right to migrate on the basis of individual rights to autonomy and equality of all humans. This *open border* position is objected by several authors of more communitarian stance. According to them, the overriding collective rights of states to self-determination entail a right to freedom of association and therefore at least a *presumptive* right to exclude non-members. On a second level, under non-ideal conditions migration restrictions need to be scrutinized in the light of vast global inequalities and persisting rates of absolute poverty. The importance of this endeavor is stressed by the evidence of numerous economists, such as Branko Milanovic, whose empirical findings indicate that the lion share of an individual's income is determined neither by education and skill level nor by race, gender, and ethnicity but nationality.[5] Furthermore, numerous authors have stressed the potential of migration in efforts to reduce global inequalities and alleviate absolute poverty. A significant moral consideration in a world with 767 million people living on less than 1.9 US$ (PPP) per day[6] and the wealthiest 20 percent of the global population in possession of 94 percent of the world's total wealth.[7]

Which position have liberal egalitarian authors taken towards migration? This largely depends on their view on both, the scope of freedom of movement as well as the scope of egalitarian justice. My aim in this work will be to demonstrate that a commitment to the liberal egalitarian values of moral equality and individual autonomy entails a qualified right to global freedom of movement. I will show that regardless of the position liberal egalitarians take towards the scope and content of justice, to be coherent, they need to endorse porous borders. What at first sight appears to be a truism turns out to be a highly contentious issue in liberal egalitarian thought. Besides normative reasoning, I will refer to evidence from social science to point out that prevalent skepticism about migration is not only theoretically incoherent with liberal theory but empirically inadequate.

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[4] According to the *U.S. Customs and Border Protection*, between 1998 and 2017 about 7,216 people have died during attempts to cross the U.S.-Mexico border. In comparison, the *Zentrum für Zeithistorische Forschung (ZFF)* estimates 139 fatalities between 1961 and 1989 at the Berlin Wall.

[5] He estimates this factor to account for 2/3 of an individual's real income, see Milanovic, Branko. "Global Inequality of Opportunity: How Much of our Income is Determined by Where We Live?" *The Review of Economics and Statistics*, February 2015: 452-460.

[6] UNICEF. "Annual Report 2015." 2015. https://www.unicef.org/publications/files/UNICEF_Annual_Report_2015_En.pdf (accessed 03 14, 2018),Here:p.20.

[7] UNDP. "Human Development Report 2015." 2015. http://hdr.undp.org/sites/default/files/2015_human_development_report_1.pdf (accessed 03 13, 2018),Here:p.5.

While fragility, conflict, and violence are primary drivers of forced migration and displacement, economic factors such as vast income gaps and inequality of opportunities explain the lion share of so-called *voluntary migration*.[8] Demographic imbalances and environmental changes are likely to increase migration pressure in the future. There are currently 258 million international migrants around the globe, of whom about 10 percent (25.9 million) are classified as refugees.[9] In 2017 two thirds of all international migrants lived in just 20 countries, with the United States (50 million), Saudi Arabia, Germany and the Russian Federation (each about 12 million) leading the list. Accumulated, the three top countries of origin India (17 million), Mexico (13 million) and the Russian Federation (11 million) constitute a larger source of people than Latin America and the Caribbean (38 million) as well as the entire African continent (36 million).

Before embarking, several qualifications are in place to specify the scope of this work. Firstly, despite its recent importance, the following discussion will not deal with the claims and rights of refugees. The duty to admit people affected by war and persecution has been acknowledged by a large majority of academics, even those defending the conventional view on immigration. Moreover, the rights of refugees are legally enshrined in binding international treaties. Secondly, this work focuses on south-north migration, which is not to undermine the significance of south-south migration but to identify the duties of wealthy liberal democracies towards those seeking admittance at their borders. In fact, intraregional migration and migration to other developing countries outweighs south-north migration substantially.[10] Thirdly, the scope of this work limits immigration to residence and economic participation in the first place. Questions of naturalization and citizenship, while very crucial, present distinct issues that cannot be addressed within this work due to space constraints.

2. Justice in Migration

The impact of borders and nationality on an individual's economic opportunities and standards of living paired with full state discretion on admission poses a significant challenge to liberal egalitarianism. After all, one of the core principles of the theory is the moral equality of all humans. How then can it be justified, that a person's life prospects are so profoundly affected by a factor as arbitrary as a person's country of birth? According to Phillip Cole, the question of immigration is "fundamental to the coherence of the whole project of liberal social justice."[11]

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[8] Bearing in mind that so-called voluntary migration is at least partially forced by difficult economic, social or physical conditions in countries of origin. There is no clear dividing line between voluntary and forced migration.

[9] See United Nations. "International Migration Report." 2017. http://www.un.org/en/development/desa/population/migration/publications/migrationreport/docs/MigrationReport2017_Highlights.pdf (accessed 03 20, 2018), It is important to note that these numbers do not include the large numbers of Internally Displaced People.

[10] World Bank Group, *Migration and Development.* Washington D.C.: World Bank Group, 2016., p.7.

[11] Christopher Wellman and Phillip Cole. *Debating the Ethics of Immigration.* Oxford University Press, 2011, Here: p.5.

He asks:

"*How can we decide that liberal goods and resources have been distributed fairly among members before we have decided how membership is to be fixed?"*[12]

But how does this convert into justified migration policies, especially in the light of other key values of liberal egalitarianism like individual autonomy and personal responsibility?[13] Does it entail a duty to abolish all borders or are there justifiable restrictions of migration? How is the question of migration associated with global justice considerations? I will aim to provide answers to these pertinent questions in this work.

To begin with, *Section 3* summarizes the debate between proponents of open borders and defenders of the conventional view of state discretion in migration. In *Section 4* I will argue that both accounts rightly reflect fundamental moral intuitions like the intrinsic value of the right to freedom of movement or the relevance of associative duties. But while the open borders position neglects the complex distributive effects of migration under current non-ideal conditions, defenders of state discretion are prone to drift to an ethically indefensible position of moral relativism. It follows that a principled liberal egalitarian view on migration needs to strike a balance between universally justifiable claims for migration restrictions, a presumptive right to freedom of movement and the significant distributive effects of migration under current conditions. To this end, I will argue, the question of migration needs to be embedded in a holistic approach and dealt with from a global justice perspective. Accordingly, *Section 5* will introduce *Liberal Cosmopolitanism*, a theory that is mostly united by the persuasion that principles of justice have global scope. Under the assumption, that human beings, not political collectives are the ultimate units of moral concern, *Liberal Cosmopolitans* assert that all relevant global institutions need to be backed by moral principles doing justice to all human beings. Due to their distributive effects, this includes trade arrangements, taxation, and migration policies.

However, disagreement among *Liberal Cosmopolitans* regarding the contents of justice partly explains why they differ widely in their views of migration. I will introduce *Global Egalitarianism* in *Section 5.1* and distinguish two normatively distinct arguments on migration arising from it. Both are committed to open borders but consider legitimate restrictions to it

[12] Wellman and Cole, "Debating the Ethics of Immigration", p.5.
[13] See Cappelen, Alexander W., and Bertil Tungodden. "A Liberal Egalitarian Paradox." *Economics & Philosophy*, November 2006: 393-408.

resulting from cultural concerns and migration pressure. In its dealing with migration, *Global Egalitarianism* reveals large intersection with *Luck Egalitarianism* which will hence be discussed in *Section 5.2*. I will rebut criticism of it arising from the *relational egalitarian* idea that we should not be concerned with the distribution of goods but with the way their distribution arises. Far from supporting state discretion in migration, I assert, *Relational Egalitarianism* speaks for globally justifiable migration policies. *Section 5.3* introduces *Global Sufficientarianism* and deals with Gillian Brock's skepticism about migration due to its alleged harmful effects on countries of origin. I will demonstrate that her negative views are for the most part based on outdated empirical evidence. Where there is reason for concern, she appears to draw wrong conclusions from it. Consequently, she mistakenly sacrifices her presumption towards a right to freedom of movement. In *Section 6*, we will turn to John Rawls' *Law of Peoples*, a theory that assumes peoples instead of individuals to be the principal agents of justice in the global sphere. Rawls is not concerned with egalitarian duties but advocates stability and political autonomy of peoples. I will mention normative and empirical reasons why, against Rawls' stipulations, the *Society of Peoples* would consider freedom of movement an essential feature of the international political sphere. In *Section 7*, I will argue that an appropriate reading of liberal egalitarianism calls for global governance in migration and will outline a framework towards a global right to freedom of movement. It is here that I will also deal with questions of political organization. Until then, to be close to real world conditions, we will take the existence of traditional nation states for granted.

3. Open Borders or State Discretion in Migration

The following section looks at arguments brought forward by both proponents and opponents of open borders. Sections 3.1 and 3.2 will portray the positive cases for open borders and state discretion in migration. Section 3.3 and 3.4 will give a résumé of some objections to both, a right to freedom of movement and a right to freedom of association.

3.1 The Case for Open Borders

In political philosophy, arguments in favor of open borders come from different schools of thought including Libertarians, Democrats, Utilitarians and Liberal Egalitarians.

The libertarian critique points out that property rights require open borders as limited immigration restricts citizen's control over their land. It is emphasized that restrictive migration policies not only hurt foreigners but limits citizens' legitimate claims to make use of their property as they see fit. The democratic account builds on the idea that the legislation of a state always affects two groups, members and non-members. According to Arish Abizadeh, a genuine commitment to a democratic theory of political legitimation necessitates the rejection of a unilateral democratic approach to the question of immigration laws.[14] A country's

[14] Arash Abizadeh, "Democratic Theory and Border Coercion." *Political Theory*, 2008.,pp.37-65,Here: p.38.

migration policy is thus only legitimate if it is backed by consensual democratic agreement. The utilitarian criticism emphasizes the economic inefficiencies caused by closed borders in the sense that demand and supply of labor cannot freely match due to regulations. This prevents millions of people from developing and taking advantage of their talents, skills, and potentials.[15] Moreover, utilitarians claim that the current regime is complicit in deepening global inequality which makes it highly inefficient in the light of the economic principle of diminishing marginal returns.[16]

Liberal egalitarianism knows two normatively distinct strategies to argue for open borders.[17] The first argues deontologically and stipulates a general right to freedom of movement resulting from critical liberal egalitarian values such as individual autonomy and moral equality. The second strand identifies obligations on the side of wealthy liberal democracies to open their borders as a response to global injustice and absolute poverty in developing countries.

Chandran Kukathas defends an open borders position based on two principles, a principle of freedom and a principle of humanity. To start with, he acknowledges that the fact that borders prevent people from moving into territories whose governments forbid them to enter does not make a strong case for an unlimited right to migration. But he asserts that in ethical theory it is interference or intervention in activities of others, that needs to be justified. Therefore, he states that "if freedom is held to be an important value, then there is at least a case for saying that very weighty reasons are necessary to restrict it."[18] According to Kukathas, besides restricting freedom of movement, a closed borders regime significantly limits individual freedoms in three ways:

i. It takes away individual's chances to flee unjust or tyrannical regimes in attempt to enter a country in which their basic and political liberties would be protected
ii. It denies individuals trying to enter a country the freedom to sell their labour and individuals in a prospective receiving country the freedom to buy this labour
iii. It significantly restricts individual's freedom to associate for reasons such as love, friendship or for the sake of fulfilling duties important to one's life plans[19]

Kukathas then turns to the principle of humanity. He argues that a clear majority of the people in the world lives in absolute poverty and claims that the most promising strategy to increase their standards of living is to move. It follows for Kukathas that rejecting these people who seek to help themselves is to "say to them that it is justified that they be denied the opportunity to get out of poverty, or even destitution."[20] Taken both principles together, Kukathas believes

[15] Wellman, "Freedom of Association and the Right to Exclude", p.105.
[16] Wellman, "Freedom of Association and the Right to Exclude", p.106.
[17] Shelley Wilcox, "The Open Borders Debate on Immigration." *Philosophy Compass*, 2009: 1-9, Here:p.1.
[18] Chandran Kukathas, "The Case for Open Migration." In *Contemporary Debates in Applied Ethics*, by Andrew I. Cohen and Christopher Heath Wellman, pp.207-220, Here:p.210.
[19] Kukathas, "The Case for Open Migration", p.210.
[20] Kukathas, "The Case for Open Migration", p.211.

that ‘the prima facie case for open borders is a strong one since very substantial considerations would have to be adduced to warrant ignoring or repudiating them.’[21]

Numerous authors have supported Kukathas’ view on open borders as an effective means to alleviate poverty. Peter Schaber argues for open borders on the basis of a duty to help people in need.[22] Schlothfeldt is not particularly concerned with a right to global freedom of movement but with global distributive justice.[23] He argues that wealthy liberal democracies have a duty to open their borders if they do not make considerable efforts to push for economic reforms that would lead to global redistribution of wealth.

3.2 The Case for State Discretion in Migration

On the side of theorists defending a sovereign right of states to exclude people and to regulate immigration according to national interests, we will distinguish three broadly different arguments. Firstly, deontological arguments based on a collective right to self- determination which necessarily entails freedom of association. Secondly, the communitarian critique of liberal theory which denies the universalizability of human goods and values and hence concludes that a political community may implement migration restrictions according to its unique conception of membership and justice. Thirdly, consequential arguments refer to the importance of state discretion in migration to prevent harmful political, cultural and economic effects.

Christopher Wellman gives a deontological, rights-based account for an argument in defense of a sovereign right to exclude. It is based on three core premises:

P.1 Legitimate states are entitled to self- determination.

P.2 Freedom of association is an integral element of self- determination.

P.3 Freedom of association includes the right not to associate with others.

Wellman supposes that a legitimate state sufficiently protects and respects human rights, not only of its own citizens but all human beings.[24] After he defends each of these premises, Wellman argues that just as individuals have an unconditional right to determine for themselves, with whom to associate and with whom not to associate, a collective political community has an equal right to determine who is given admission. From the same analogy follows for

[21] Kukathas, “The Case for Open Migration”, p.211.

[22] See Schaber, Peter. "Migration und globale Armut." In *Bürgerschaft und Migration*, by S. Zurbuchen, 149-164. Münster: Litt Verlag, 2007.

[23] See Schlothfeldt, Stephan. "Ökonomische Migration und Verteilungsgerechtigkeit." In *Was schulden wir Flüchtlingen und Migranten?*`, by A. Märker and Stephan Schlothfeldt, 93-109. SpringerVS, 2002.

[24] Wellman, “Freedom of Association and the Right to Exclude”, p.16.

Wellman, that just as much as individuals can decide not to associate with anyone, it is morally permissible for a state to exclude foreigners.[25]

Thus, he concludes the following:

> C.1 Legitimate states have the right not to associate with others, including would-be immigrants.

It should be noted, that Wellman himself does not lobby for making use of this right, in fact, he believes that current immigration policies are too restrictive.[26] Nevertheless, he makes the case "that legitimate states are morally entitled to unilaterally design and enforce their own immigration policies", bearing in mind though that this cannot establish more than a *presumptive right*. This means that the right to exclude is not absolute but can potentially be outweighed by other claims.[27]

One of the most influential and well-known defenses of a state's right to exclude stems from Michael Walzer, who combines a collective right to freedom of association with a communitarian viewpoint of membership. Accordingly, political membership must be understood as a social good determined and constituted by shared understandings of a political community.[28] As such, his argument exemplifies the communitarian criticism of liberal pretensions to stipulate universally valid moral principles. In laying out his case, Walzer applies different analogies to the state to determine which immigration policies wealthy democracies should apply. According to him, a private club represents an appropriate analogy for a national state, as both are free to make decisions on admission based on criteria determined by their understanding of that community's character. However, the club analogy does not fully grasp the commitments a political community might have towards non-members seeking admission, such as those "recognized as national or ethnic relatives."[29] This consideration leads Walzer to the conclusion that states have authority in determining their immigration policies and hence may legitimately favor those prospective migrants with similar lingual, cultural, and ideological characteristics.

Consequential arguments against open borders refer to the potentially harmful effects of an open borders policy. While the academic debate focuses on the alleged impact of migration on welfare institutions and political functioning, the public discourse discusses security concerns as well as harmful wage and employment effects on native citizens. I will assess these claims as part of the discussion in the main body of this work.

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[25] Wellman and Cole, "Debating the Ethics of Immigration", p.3.
[26] Wellman and Cole, "Debating the Ethics of Immigration", p.7.
[27] Wellman and Cole, "Debating the Ethics of Immigration", p.3.
[28] Wilcox, "The Open Borders Debate on Immigration", p.2.
[29] Walzer, Michael. *Spheres of Justice.* New York, 1983, p.41.

3.3 Objections to Open Borders

David Miller admits that "the idea of a right to freedom of movement is not in itself objectionable"[30], but he opposes overexpansion of it as he argues that the physical extent of this right is not infinite but depends on the fact whether the vital interests of an individual are endangered if it is restricted. These vital interests mainly consist of life-sustaining goods such as security, food and medical care. Miller distinguishes *bare* and *basic* interests and argues, that immigration only represents a *basic* interest for those fleeing political persecution or starvation, not those seeking to move for better economic opportunities.[31] Additionally, he assumes that a person can legitimately demand access to an adequate range of options in the fields of occupation, religion, cultural activities, marriage partners, and so forth. Miller concludes that a 'decent' state fulfills these criteria and thus does not give its citizens a basic interest strong enough to ground a human right to migration.[32] From this follows that Miller grants a right to refuge to people affected by wars, political persecution and starvation but not to people suffering from a lack of opportunity due to economic and political underdevelopment.

This leads us to the claim that a global open borders regime offers a promising policy to alleviate absolute poverty as it allows poor people to take matters into their own hands. The empirical premise of this argument will be discussed at length in the main body. For the sake of the argument, it will now be assumed that migration is effective in reducing poverty. What at first sight appears to be a strong argument for open borders turns out to make freedom of movement contingent on an unjust global institutional setting. It seems then that migration is subsumed under distributive and economic considerations. This undermines the intrinsic value that a right to freedom of movement might have for one's life plans, independent of inequalities in living standards and wealth.[33]

3.4 Objections to State Discretion in Migration

Starting with the deontological arguments for a sovereign right to exclude as brought forward by Christopher Wellman or Michael Walzer, it is necessary to scrutinize the coherence of the analogies these authors employ as well as the significance of *freedom of association.* Both Wellman and Walzer make relatively uncontroversial claims regarding the freedom of association of individuals in choosing marital partners or private clubs in selecting members. The fallacy then lies in transferring the conclusions that follow from the private context to that of a national state. While most individuals can decide not to marry or not to join any club without consequences, not being a member of any state is perceived as an anomaly in

[30] David Miller, "Immigration : The Case for Limits" In *Contemporary Debates in Applied Ethics*, by Andrew I. Cohen and Christopher Heath Wellman, pp.193-207, Here:p.195.
[31] Miller, "Immigration: The Case for Limits", p.195.
[32] Miller, "Immigration: The Case for Limits", p.196.
[33] Benhabib, Seyla. "The Law of Peoples, Distributive Justice, and Migrations." *Fordham Law Review*, Vol.72 2004: 1761-1787, Here: p.1781, Supra Note 55.

international law.[34] As Sarah Fine points out, the right to freedom of association is conditional on not harming others with its execution. In the case of a state excluding non-members, the obvious risk lies in harming both, overruled members who wish to admit certain aliens and non-members whose legitimate interests in joining a community are thwarted.[35] Secondly, Fine criticizes these analogies for illegitimately extending the scope of freedom of association. While there are convincing reasons for freedom *not* to associate in very intimate affairs such as marriage, it is far from clear how the mere presence of non-members in a state interferes with the "associational rights of individual citizens."[36]

We will focus on consequential arguments defending state sovereignty in migration in Section 5 and 6. Wellman points out that most counterarguments imposed to challenge consequential reasoning are of a similar nature. As a response to those arguing that we may justifiably limit immigration to preserve a particular common good X (culture, trust, security, wage levels, etc.) critics will question:

1. Is limiting migration both, necessary and sufficient to secure X? Call this the *empirical challenge*.

2. If limiting migration turns out to be necessary and sufficient to secure X, do those seeking to restrict immigration have a moral right to X? Call this the *normative challenge.*[37]

This framework will guide my deliberations about consequential arguments in the following sections.

4. Embedding Migration in Global Justice

The debate between open and closed border proponents highlights that migration is theoretically significant "because of the way in which it pits the claims of the state as a whole against the individual rights of both citizens and foreigners."[38] Theorists of a liberal stance like Kukathas attach superordinate value to universal individual autonomy and moral equality resulting in an open borders position. This represents an essential defense of the intrinsic value of the right to freedom of movement which is deeply entrenched in liberal theory.[39] It follows then that any restrictions of it must be based on publicly justifiable reasoning. Nevertheless, this account neglects the complexity, feasibility and the distributive effects of migration under current non-ideal conditions with its historical injustice and vast global inequalities. It is relatively unclear how many people would move to which places if all borders were to be abolished. Could the

[34] Wellman and Cole, "Debating the Ethics of Immigration", p.6.
[35] See Sarah Fine, "Freedom of Association is Not the Answer." *Ethics*, January 2010: 338-356.
[36] Fine, "Freedom of Association is Not the Answer", p.352.
[37] Wellman and Cole, "Debating the Ethics of Immigration", p.51.
[38] Wellman and Cole, "Debating the Ethics of Immigration", p.1.
[39] See Whelan, Frederick. "Citizenship and the Right to Leave." *American Political Science Review*, September 1981: 636-653.

traditional national welfare state continue to exist in such a regime? Furthermore, there are serious concerns that open borders could harm the globally worst-off. Neither Kukathas nor champions of open borders as a measure to discharge duties of global distributive justice cover these empirical complexities sufficiently. Moreover, given the uncertainty about the distributive effects of migration, an open borders policy would signify a shift from one unprincipled migration regime to another.[40]

Defenders of absolute state discretion in migration conceive of freedom of association as an integral component of a state's right to self-determination and deduce from it a right to determine membership. Communitarians like Walzer start their ethical reasoning from a position, in which moral agents are already committed to certain individuals, groups or communities.[41] This account rightly reflects moral intuitions and the relevance of associative duties. But it is highly problematic when it is applied to nation states because it uncritically stipulates, that the ethical status of a boundary is simply given and "constituted by the relationships that constitute the community."[42] As a result, the communitarian approach is prone to drift to moral relativism as its justification for restricting migration seems only defensible to those within a particular community. The suspicion of moral relativism is confirmed by the fact that the communitarian account is oblivious to the repercussions and injustice caused by a history replete with European colonialism and Western imperialism. As Cole puts it, given a historical context "in which Europeans claimed the right to roam the world freely and exploit its resources, arguments that aim to justify the restriction of that freedom when it does not, on the face of it, benefit the former colonialist states, are in danger of looking like the defense of privilege rather than the defense of ethics."[43] Moreover, given the arbitrariness of nationality and the instability of borders, it is highly unclear why the boundaries of states should be conceived as "presuppositions of justice rather than as institutions whose justice must be assessed?"[44]

Therefore, to be coherent, liberal egalitarianism needs to be committed to moral universalism, which is deeply rooted in Western ethical theory and "has given liberal political theory such a powerful voice against 'aristocratic' moral theories that claim ethical superiority for particular groups, such as in the justification of colonialism and slavery."[45] Pogge defines a moral conception of social justice to be universalistic if and only if:

i. It subjects all persons to the same system of fundamental moral principles;

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[40] Jonathan Seglow. "Immigration and Global Justice." *Royal Holloway Department of Politics and International Relations Working Paper Series*, April 1, 2006: 1-12. Here:p.4.

[41] Phillip Cole. "Open Borders: An Ethical Defense." In *Debating the Ethics of Immigration - Is There A Right to Exclude?*, by Christopher Heath Wellman and Phillip Cole, 159-313. Oxford: Oxford University Press, 2011, Here: p.174.

[42] Cole, "Open Borders: An Ethical Defense", p.176.

[43] Wellman and Cole, "Debating the Ethics of Immigration", p.6.

[44] O'Neill, Onora. *Bounds of Justice.* Cambridge: Cambridge University Press, 2000, p.4.

[45] Cole, "Open Borders: An Ethical Defense", p.174.

ii. these principles assign the same fundamental moral benefits (e.g. claims, liberties, power, and immunities) and burdens (e.g. duties and liabilities) to all; and

iii. these fundamental moral benefits and burdens are formulated in general terms so as not to privilege or disadvantage certain persons or groups arbitrarily.[46]

It is important to note, that the first condition allows for differential moral treatment if it arises from generated special moral benefits and burdens under the condition that these are set up according to the same fundamental principles binding for all. Condition iii. requires that all discriminations inherent to the system of fundamental moral principles need justification.[47] Firstly, this means that special benefits and burdens can arise from various sources such as contracts, elections, country-specific legislation, etc. if this is in accordance with the fundamental principles. Secondly, it indicates that to be coherent with moral universalism, one need not take the position of abolishing all borders, but boundaries and migration restrictions need justification based on fair and impartial criteria.

Besides a presumption for freedom of movement, liberal theory needs to scrutinize migration restrictions in the light of vast global inequalities and persisting rates of absolute poverty. To get a better understanding of what is at stake, the following section will take a brief look at the effects of migration on migrants.

A recent World Bank Report summarizes the effects on migrants as follows:

> *"The bulk of the benefits from international migration accrue to migrants themselves, as their income increases significantly. Migrants from the poorest countries, on average, experienced a 15-fold increase in income, a doubling of school enrollment rates, and a 16-fold reduction in child mortality after moving to a developed country."*[48]

Large income gaps occur not only in agriculture and construction but across the entire skill range. This is exemplified by the average Filipino nurse, making seven times as much in Australia, the average Sri Lankan accountant earning six times as much in the United Kingdom as well as the Egyptian doctor who earns five times more (all in purchasing power parity) after moving to the United States.[49] However, it should be noted that the wages of immigrants on average remain 20 to 30 percent below those of equally skilled native citizens.[50]

Beyond the economic impact, the report mentions the beneficial role of migration in empowering marginalized groups such as women and minorities as it allows them to escape

[46] Pogge, Thomas. *World Poverty and Human Rights.* Polity, 2008., p.98.
[47] Pogge, "World Poverty and Human Rights", p.100.
[48] World Bank Group, "Migration and Development", p.15.
[49] World Bank Group, "Migration and Development", p.10.
[50] McKinsey Global Institute. *People on the Move: Global Migration's Impact and Opportunity.* 2016, p.9.

from abusive social practices.[51] On the other hand, uprooting oneself and being separate from one's family often evokes significant emotional distress. Resulting from a loss of accustomed cultural norms, traditions and social support systems several migrant groups witness an increase in rates of mental illness.[52] In these cases, the improved economic situation might be thwarted by negative repercussions on people's psychological well-being.[53]

It is crucial to get a better understanding of the composition of migrants in the current regime to assess its impact. Voluntary transnational migration helps people to spread income risks, gain access to higher paying jobs and allows them to overcome domestic market constraints. As such, it is primarily a livelihood strategy in reaction to relative deprivation rather than a response to destitution.[54] Given the high costs for international transportation, visa and passport fees, smuggling and hiring costs as well the risks associated with loss of income the poorest are less likely to be involved in international migration. Consequently, the most substantial direct benefits of migration accrue neither to the poorest members of a community nor the poorest countries.[55] Nevertheless, this pattern is not set in stone as the character of migration is likely to change during a community's or country's migration history. When people first start migrating, due to lack of information and contacts the costs are high, so mainly the wealthier families manage to emigrate. As time passes, social networks develop which results in lower costs of migration and allows more impoverished people to migrate.[56]

In summary, I take it that liberal egalitarianism needs to attribute special importance to a right to freedom of movement. However, as Kukathas admits, it can only be a *prima facie* right that can justifiably be restricted if it risks bearing unjustifiable harmful consequences.[57] These might be induced by the effects of real-world conditions on global inequalities and migration pressure. Given the prospective gains through migration against the background of vast global disparities, it becomes clear that closed borders intuitively appear morally questionable. Even if we ascribe importance to the value of absolute state sovereignty, it might have inferior significance in the context of vast global inequality. It follows that a principled liberal egalitarian view on

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[51] See Ratha, Dilip, Sanket Mohapatra, and Elina Scheja. "Impact of migration on social and economic development: A review of evidence and emerging issues." *Policy Research Working Paper*, February 2011.

[52] See Bhugra, D, and Becker MA. "Migration, cultural bereavement and cultural identity." *World Psychiatry*, February 4(1), 2005: 18-24.

[53] While authors like Paul Collier have argued that this gives reason to restrict migration I am not convinced by the argument that polls showing that people are no happier after migrating make a case to restrict people's rights to move freely.

[54] De Haas, Hein. "Migration and Development: A Theoretical Perspective." *International Migration Review*, March 5, 2010: 227-264, Here:244.

[55] See Kapur, Devesh. "Remittances: The new development mantra?" In *Development Impact and Future Prospects*, by Samuel Munzele Mainbo and Dilip Ratha. Washington D.C.: World Bank, 2005.

[56] See Stark, Oded, Edward Taylor, and Shlomo Yitzhaki. "Remittances and Inequality." *Economic Journal*, 1986: 722-740 and Koechlin, Valerie, and Gianmarco Leon. "International Remittances and Income Inequality: An Empirical Investigation." *Journal of Economic Policy Reform*, October 2007: 123-141.

[57] Kukathas, "The Case for Open Migration", p.211.

migration needs to strike a balance between universally justifiable claims for migration restrictions, a presumptive right to freedom of movement and the large distributive effects of migration under current conditions. Doing so requires a holistic approach from a perspective of global justice.

5. Liberal Cosmopolitanism and Justice in Migration

I argue that a coherent liberal egalitarian approach needs to embed its account on migration into a broader account of global justice. Similar to other aspects of global justice like trade and taxation, migration needs to be scrutinized from a global justice perspective because it involves people across different nations and has significant distributive effects. Therefore, it raises questions whether the background conditions in which these interactions take place are fair from an impartial viewpoint. To avoid moral relativism, these reflections should not be influenced by self-interested or nationalist considerations.[58] The original position Rawls makes use of in his pioneering work *A Theory of Justice* offers a theoretical device that allows us to assess the fairness of principles impartially from a hypothetical choosing situation. The veil of ignorance shields from distortive influences and partisan reasoning.[59]Accordingly, the Rawlsian framework presents a useful mechanism to model impartiality and can arguably be used to analyze criteria of global justice.

In *A Theory of Justice*, Rawls convenes the parties in the original position to decide on principles regulating the basic structure of society. However, he confined his account to be limited to closed systems, that is to say, nation states. Famously, Rawls endorsed two principles, one that protects equal basic rights and liberties and a second principle, that allows social and economic inequalities as long as these are to the greatest benefit of the least advantaged (b. difference principle) as well as attached to positions and offices open to all under conditions of fair equality of opportunity (a. fair equality of opportunity principle). Moreover, it is assumed that restrictions of basic liberties for the sake of economic gains would be impermissible.[60] Before Rawls expanded his account in a substantially different manner on a global scale in the *Law of Peoples* to derive which principles should guide liberal democracies in their international affairs (Section 6), several *liberal cosmopolitan* authors have deployed his framework globally. These authors believe that the original position framework is equally useful to assess justice across societies and hence take a global view of the original position.[61]We will see that liberal cosmopolitans do not represent a uniform group and differ

[58] Carens, Joseph. "Aliens and Citizens: The Case for Open Borders." *The Review of Politics*, Spring 1987: 251-273, Here:p.256.

[59] Gillian Brock. "The original position in the Law of Peoples." In *The Original Position*, by Timothy Hinton, 247-265. Cambridge: Cambridge University Press, 2015, p.248.

[60] See Rawls, John. *A Theory of Justice.* Harvard University Press, 1971.

[61] See Beitz,Charles. *Political Theory and International Relations.* New Jersey: Princeton University Press, 1979 and Joseph Carens, “Aliens and Citizens: The Case for Open Borders”.

largely in their views on the contents of justice. However, as summarized by Thomas Pogge, there are three core elements they mostly adhere to:

i. *Individualism*: the ultimate units of concern are human beings, or persons - rather than, say, family lines, tribes, ethnic, cultural, or religious communities, nations, or states. The latter may be units of concern only indirectly, in virtue of their individual members or citizens.
ii. *Universality*: the status of ultimate unit of concern attaches to every living human being equally – not merely to some sub-set, such as men, aristocrats, Aryans, whites, or Muslims.
iii. *Generality:* this special status has global force. Persons are ultimate units of concern for everyone – not only for their compatriots, fellow religionists, or such like."[62]

As Gillian Brock points out, a commitment to liberal cosmopolitanism "rules out positions that attach no moral value to some people or weights the moral value some people have differentially according to their race, ethnicity, or nationality."[63]

While agreeing on the scope of justice, *Liberal Cosmopolitans* disagree about the contents of justice. The extent to which theorists believe that obligations of global justice require wealthy democracies to eliminate all inequalities instead of just eradicating absolute poverty to ensure that basic needs are met serves as a dividing line between these two camps. I follow Brock in classifying these two groups as G*lobal Egalitarians* and *Global Sufficientarians*.[64] This disagreement regarding the contents of justice partly explains why they differ in their views of migration. Finally, we will focus on the controversy about the scope of justice between *Liberal Nationalism* and *Liberal Cosmopolitanism* by discussing the debate around John Rawls' *Law of Peoples*. At the core of the global justice debate stands the question to what extent the world can be seen as a *context of justice*, "characterized by conflicting claims that call for adjudication in light of principles of justice."[65] *Liberal Cosmopolitans* have argued for the existence of such a context of justice on different grounds and accordingly stipulated diverse principles of justice with global scope. In contrast, *Liberal Nationalist* positions assume that individuals have stronger duties of justice towards compatriots. However, unlike communitarians, they are mostly willing to abide by the universalistic imperative and aim to offer universally justifiable reasons for their position. I will claim that both theories, in recognition of their commitment to the values of liberal egalitarianism, should endorse a qualified right to freedom of movement.

[62] Pogge, "World Poverty and Human Rights, p.175.
[63] Brock, Gillian. "Contemporary Cosmopolitanism: Some Current Issues." *Philosophy Compass*, 2013: 689-698.Here:p.4.
[64] Brock, "Contemporary Cosmopolitanism: Some Current Issues", p.9.
[65] Forst, Rainer. "Towards a Critical Theory of Transnational Justice." *Metaphilosophy*, January 2001: 160-179, Here:p.160.

Nevertheless, in Section 7 I will offer a critique of both theories and argue for a global governance approach to migration accruing from a critical theory of transnational justice.

Another objective of the next section is a perusal of the empirical effects of migration. On the one hand, this aims to link the theoretical debate with actual policy issues. On the other hand, numerous authors have displayed an unsatisfying tendency to either not back up their empirical claims with evidence or to only cite findings in support of their arguments.[66] This has led to a two-sided negative perception of migration about its impact on welfare systems and security in receiving countries as well as its effectiveness to alleviate global inequalities and to improve the condition of the world's worst off. To be sure, there are legitimate concerns about the effects of migration on the globally worst-off that need to be investigated and dealt with. Nonetheless, I will aim to point out that restricting migration is unlikely to be sufficient and necessary to improve the situation of the globally worst-off.

5.1 Global Egalitarianism and Migration

In the following, I will present two theories of *Global Egalitarianism* that both assume a single global construction of the original position in which representatives do not know which state the citizens they represent inhabit. Moreover, they are unaware of this state's attributes regarding culture, territory or population as well as the individual characteristics of people they represent. Both infer that a global difference principle would be chosen from this position. The difference lies in the way how both theories treat freedom of movement. Charles Beitz does not address freedom of movement directly but appears to conceive of it as a corollary of his theory of global justice. In contrast, Joseph Carens positions migration at the center of his *Global Egalitarian* account and argues that *freedom of movement* would be an essential component of the system of basic liberties granted to all individuals.

Global Egalitarianism arose from widespread discontent with the fact that Rawls limited the principles extracted from his theory of justice to the domestic realm. In succession Rawls has been accused of inconsistency as theorists blamed him for accepting morally arbitrary inequalities at the international level. This sparked a controversial debate on the appropriate scope of justice with a focus on the question what exactly triggers egalitarian duties of justice. In defense of Rawls, several authors have aimed to point out what distinguishes the global from the domestic sphere to justify a theoretical separation.

Blake argues that egalitarian duties presuppose the existence of coercive institutions backed by sovereign states. These coercive institutions can only be justified if a society does not allow arbitrary inequalities. He asserts that no such institutions exist at the global level and concludes

[66] Oberman, Kieran. "Poverty and Immigration Policy." *American Political Science Review*, May 2015: 239-251.,Here: p.242.

that the global sphere triggers much less demanding egalitarian duties.[67]One objection to this argues that global institutions such as the Bretton Woods organizations do indeed execute coercion which in turn justifies global egalitarian duties.[68]

Other advocates of Rawls argued that duties of distributive justice only arise in a context of "institutionalized, mutually beneficial social cooperation that allows one to identify the goods that are to be distributed, the legitimate claims of the cooperating partners, and the addressees of those claims."[69]They further state that no such context exists on the global sphere and infer that a national conception of distributive justice is justified. Disagreement comes from at least two camps of global egalitarians. Simon Caney argues that egalitarian duties do not presuppose such a context but in fact mandate that institutions of social co-operation are established.[70] The other camp claims that there is as a global basic structure constituted by political and trade relations. Beitz puts it as follows:

> *"[I]f evidence of global economic and political interdependence shows the existence of a global scheme of social cooperation, we should not view national boundaries as having fundamental moral significance. Since boundaries are not coextensive with the scope of social cooperation, they do not mark the limits of social obligations."*[71]

This leads him to the conclusion that the difference principle, if chosen in the domestic context, would also be chosen in the global original position. The result is that global institutions would need to be established in a way that particularly considers the well-being of the globally worst-off. How does this translate to his view of migration policies? Beitz hardly addresses questions of migration directly, but as Seyla Benhabib points out, his theory has "clear implications for migration rights and just membership."[72]In fact, Beitz argues in a utilitarian manner when he comments on Henry Sidgwick, who argues that migration restrictions are permissible to preserve internal cohesion. Beitz disagrees by arguing that "it seems unlikely that the value derived by their citizens from the cohesion and the order of relatively well-endowed societies is greater than the value that could be gained by others from the redistribution of labor (or wealth) that would be brought about by adherence to cosmopolitan policies."[73]Benhabib concludes that Beitz conceives of migratory flows as one aspect of "global redistribution through which the poor of the earth claim a share of the wealth of the richer countries by seeking

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[67] See Blake, Michael. "Distributive Justice, State Coercion, and Autonomy." *Philosophy and Public Affairs*, 2001: 257-296.

[68] See Cohen, Joshua, and Charles Sabel. "Extra Rempublicam Nulla Justitia?" *Philosophy& Public Affairs*, Spring 2006: 147-175.

[69] Forst, "Towards a Critical Theory of Transnational Justice", p.161.

[70] Brock, "Contemporary Cosmopolitanism: Some Current Issues", p.12.

[71] Beitz, "Political Theory and International Relations", p.151.

[72] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1776.

[73] Beitz, "Political Theory and International Relations", p.151.

access to them."[74]She criticizes this because she believes that Beitz subsumes freedom of movement under global distributive justice and therefore neglects its intrinsic value.

In a classic piece, *Aliens and Citizens: The Case for Open Borders,* Joseph Carens argues that liberal democracies need to act in accordance with their liberal principles and concludes that states have a prima-facie duty to maintain open borders. He reaches this conclusion by demonstrating an alleged incompatibility of restricted immigration with three main liberal theories, namely utilitarianism, liberal egalitarianism and libertarianism. Carens deploys a global view of the original position and accordingly infers that due to the *veil of ignorance*, rational individuals would be hindered to know about their place of birth or citizenship. It follows then that the same two principles Rawls identifies for the domestic context would apply globally. Which institutions would then be designed? Carens assumes that in ideal theory, "where we can assume away historical obstacles and the dangers of injustice, some of the reasons for defending the integrity of existing states disappear."[75]Nevertheless, for the sake of the argument, it is presumed that modern states can be justified on the grounds of desirable political decentralization. Importantly though, state sovereignty would be limited by principles of justice, including an international difference principle to regulate inequalities among states to the benefit of the worst-off.[76]Although migration pressure might significantly decrease with an international difference principle in place, Carens rightly points out that people would still have significant interests to migrate. Either due to personal preferences arising from emotional, religious or cultural affiliations or because economic opportunities for certain individuals might still differ greatly from one country to another. Carens argues that behind the veil of ignorance, "one adopts the perspective of the one who would be most disadvantaged by the restrictions, in this case the perspective of the alien who wants to immigrate."[77]In conclusion, Carens states that in a global reading of the original position, the right to migrate would be an essential component of the system of basic liberties granted to all individuals.

Notwithstanding, with reference to Rawls, Carens introduces a *public order restriction*. This means that liberties can be restricted if their short-term maintenance undermines their long-term existence. The idea here is that general safety and public order are prerequisites for any liberty. If a universal right to migration induced chaos, everyone would be made worse off and it is evident that everyone would agree to such a limitation in the original position. Carens further explicates:

> *"Rawls warns against any attempt to use this sort of public order argument in an expansive fashion or as an excuse for restrictions on liberty undertaken for other reasons. The hypothetical possibility of a threat to public order is not enough.*

[74] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1781, Supra Note 55.
[75] Carens, "Aliens and Citizens: The Case for Open Borders", p.258.
[76] Carens, "Aliens and Citizens: The Case for Open Borders", p.258.
[77] Carens, "Aliens and Citizens: The Case for Open Borders", p.258.

Restrictions would be justified only if there were a 'reasonable expectation' that unlimited immigration would damage the public order and this expectation would have to be based on 'evidence and ways of reasoning acceptable to all.'"[78]

This means the burden of proof on the side of those who want to limit migration because of possible threats to the public order is substantial. Importantly, according to Rawls the possibility of a right-wing backlash offers no justifiable rationale to limit migration. In any case, in the circumstances of ideal theory, there appears to be little reason for concern. Carens admits that things stand differently in the light of non-ideal theory and current real-world conditions. Consequently, he acknowledges the necessity of at least some border restrictions for public safety reasons. Moreover, Carens identifies two potential threats open borders could pose to the maintenance of basic liberties in wealthy democracies which will each be discussed in turn:

i. Immigrants from societies where liberal democratic values are weak or absent could pose a threat to the maintenance of a just public order
ii. The sheer number of people trying to migrate can pose a threat to public order

Ad i. Migration – A Security Threat to the Just Public Order?

On the one hand, i. can be understood as a concern about public security and crime levels. Is migration of people from countries with weak liberal democratic values a threat to public order in wealthy democracies? If, ceteris paribus, migration was evidently associated with a higher prevalence of criminal and terrorist acts, this would fulfill Rawls' public order restriction. The following section takes a brief look at the empirical relevance of this concern under current conditions.

In fact, surveys reveal that worries about security even surpass economic concerns in the public opinion about immigration.[79]While not easily distinguishable in polls, fear of terrorism and fear of increased crime rates should be differentiated. The empirical link between border restrictions and acts of terrorism is far from straightforward. As Kukathas demonstrates, severe border restrictions seem to be highly ineffective in reducing the threat of terrorism because states can limit legal migration, but they are much less capable of limiting irregular migration.[80]In trying to do so, states would have to bear not only large financial costs but would need to severely restrict civil liberties of their own citizens. Finally, even if states were able to keep out all foreigners it is unproven that this will help to reduce the threats of terrorism. After all, a vast majority of people involved in terrorist attacks within the last decades in Europe were citizens of the European Union.[81]Similarly, after 9/11 the ratio of citizens and permanent residents

[78] Carens, "Aliens and Citizens: The Case for Open Borders", p.259.
[79] See Bianchi, Milo, and Paolo Buonanno. "Do Immigrants cause Crime?" *Journal of the European Economic Association*, August 8, 2012: 1318-1347.
[80] Kukathas, "The Case for Open Migration", p.218.
[81] See Danish Institute for International Studies. "European's Refugee Crisis and the Threat of Terrorism - An Extraordinary Threat?" May 2017.

involved in jihadist terrorism in the United States amounts to 85 percent.[82]However, it should not be neglected that social marginalization and a perceived or real lack of opportunity are crucial factors in explaining radicalization which can make isolated migrants vulnerable to terrorist recruitment. This highlights that extremism among minorities is mostly a symptom of poor integration and lack of perspectives.[83]

One meta-study analyzed 51 studies from 1994-2014 measuring the relationship between immigration and crime rates in the largest migrant country, the United States. Given the complexity of the matter, the authors are hesitant to promulgate a clear takeaway message. However, they identify a weak negative relationship between immigration and crime rates albeit with high variation across different studies.[84]One study argues, that the overrepresentation of foreigners in prisons in many European countries is largely due to socioeconomic factors. Labor market participation is a key determinant in explaining an individuals' likelihood to commit crimes. As a result, wide gaps in labor market participation in countries like the Netherlands, Germany and Sweden explain at least partially why foreigners are more prone to criminal acts.[85]There is evidence for other confounding variables such as the punishment of minor migration offenses as well as overpolicing and racial profiling in areas with high rates of migrants.[86]

In summary, migrants generally do not appear to threaten public safety, certainly not to an extent that would justify restrictions of liberties according to Rawls criterion. Moreover, this presents an issue that can be addressed with policies focusing on improved labor market access and social integration.

Ad i. Migration – A Cultural Threat to the Just Public Order?

On the other hand, i. might be understood as a version of David Millers' argument for restricting migration, which purports that a state's right to limit migration is derived from its legitimate interest to be in control of its public culture.[87] It is important to note that Miller does not subscribe to a communitarian understanding of political membership. He is unconvinced by the

http://pure.diis.dk/ws/files/910914/Report_05_Europes_Refugee_Crisis_Web.pdf (accessed 03 12, 2018).

[82] See New America. "Terrorism in America After 9/11." n.d. https://www.newamerica.org/in-depth/terrorism-in-america/who-are-terrorists/ (accessed 03 15, 2018).

[83] Danist Institute for International Studies, "Europe's Refugee Crisis and the Threat of Terrorism – An Extraordinary Threat?" p.42.

[84] See Ousey, Graham C., and Charis E. Kubrin. "Immigration and Crime: Assessing a Contentious Issue." *Annual Review of Criminology*, June 27, 2018: 63-84.

[85] See Bell, Brian. "Crime and immigration." *IZA World of Labor*, 2014: 1-10.

[86] See UK Ministry of Justice. "Statistics on Race and the Criminal Justice System 2008/2009." June 2010. https://www.gov.uk/government/uploads/system/uploads/attachment_data/file/217822/stats-race-and-the-criminal-justice-system-2008-09c1.pdf (accessed 03 19, 2018).

[87] See Miller, "Immigration: The Case for Limits".

club analogy brought forward by communitarians and concedes that strong reasons need to be given to restrict migration.

Miller's argument is based on two premises. The first sets forth that "states in question require a common public culture that in part constitutes the political identity of their members, and that serves valuable functions in supporting democracy and other social goals."[88]The second postulates that immigrants are likely to adhere to different cultural and political values which might change a society's public culture. It is important to note that Miller's account is neither chauvinist nor does he suppose that immigrants would necessarily destroy a society's public culture. For his argument to be sound he believes, it suffices that immigration takes away a political community's legitimate interest in being in control of its public culture. Taken alone this may not be a strong argument for limiting immigration, but in a more recent contribution Miller points out a more powerful challenge to the global egalitarian commitment to open borders.[89] His argument here is based on the supposition, that welfare systems require a certain degree of social trust which is mainly provided by common national culture. He further refers to empirical literature arguing that increased "cultural heterogeneity does lead to lower degrees of trust between the culturally differentiated groups and also that this lack of trust may take the form of unwillingness to support policies that are seen to benefit the other groups."[90]This would justify border restrictions because immigration might negatively affect the state's political functioning, its distribution of social goods as well as its ability to design institutions according to its conception of social justice.

If Miller is right, that welfare systems require a certain degree of social trust which is mostly provided by shared national culture, I suppose this would justify border restrictions. This is because I believe that welfare systems represent universally justifiable political institutions. If an *open borders* policy results in a *race to the bottom*, in which domestic welfare systems and redistribution policies deteriorate because they cannot be upheld we have universalistic reasons to depart from it. On the other hand, this appears to make the implausible assumption that migrants seek admission to these welfare systems only to benefit from them without making contributions. As we will see, the problem lies in the empirical foundations of Miller's argument.

Ryan Pevnick questions Miller's argument by raising doubts about the causal relationship between the heterogeneity of a national population and the social trust among its people. According to him, "the empirical evidence on which it hinges is (at least) not unambiguously supported by the empirical literature."[91]In contrast, he cites research indicating that support for

[88] Miller, "Immigration: The Case for Limits", p.199.
[89] See Miller, David. "Nations and Citizenship." *The Journal of Political Philosophy*, 2008: 371-390.
[90] Miller, "Nations and Citizenship", p.378-379.
[91] Pevnick, Ryan. "Social Trust and the Ethics of Immigration Policy." *The Journal of Political Philosophy*, 2009: 146-147.Here: p.146.

the welfare state primarily depends on institutions rather than on attributes of the national population. Without denying that immigrants are likely to adhere to different cultural and political values, Pevnick purports that identification with a community is socially constructed and can be influenced by public policy. This implies that restricting migration is neither necessary nor sufficient to secure social trust.

It is difficult to assess the effects of an *open borders* scenario on national coherence and a state's ability to maintain welfare policies. On the one hand, there is disagreement about clear measures of factors like social coherence and trust. On the other hand, these measures depend on the largely unknown effects of an *open borders* scenario. How many and which people would move? Where would they go? We will turn to these questions in the next section.

For now, I argue that the current effects of migration on public coffers might serve as a proxy to estimate the alleged effects Miller is concerned about. Besides wages and unemployment, especially in countries with inclusive welfare policies, the political debate focuses on the impact of migration on the national budget and the provision of public services. This is an important issue since people in OECD countries are significantly more likely to oppose migration if they believe that immigrants represent a fiscal burden.[92]The effects are heterogenous and contingent on domestic tax and benefit systems as well as the composition of the migrant population in terms of age and skills. Researchers address this complexity with different methodologies which results in varying outcomes.[93]A simple static approach deducts social transfers migrants receive from their tax payments and social security contributions at a given time. This calculation estimates that compared to domestic citizens, immigrants on average contribute US$ 4,400 more per household to public coffers in OECD countries.[94] Regardless of the underlying assumptions and methodologies, the fiscal impact of migration, whether positive or negative, rarely exceeds 0.5 percent of GDP in a given year. The OECD reckons the average effect on its member countries to be around 0 percent.[95]

Employment status, skill level and age are the strongest determinants in assessing a migrant's contribution to the public purse. Particularly countries with better labor market integration as well as comparatively younger and better educated migrant populations are likely to benefit from a positive fiscal impact. In this regard, a more selective migration policy pays off as exemplified by Australia, New Zealand, Luxembourg and Switzerland where migrants contribute significantly to public coffers.[96]It is important to note, that the often-chastised

[92] OECD. "International Migration Outlook 2013." 2013. http://dx.doi.org/10.1787/migr_outlook-2013-en (accessed 03 15, 2018),Here: p.127.

[93] The International Migration Outlook distinguishes a static accounting approach, dynamic models and macroeconomic models; See OECD, "International Migration Outlook", p.128.

[94] Clemens, Michael. *Do Immigrants Fill Public Coffers, or Drain Them? We Finally Have an Authoritative Estimate.* 08 26, 2013. https://www.cgdev.org/blog/do-immigrants-fill-public-coffers-or-drain-them-we-finally-have-authoritative-estimate (accessed 03 16, 2018).

[95] OECD, "International Migration Outlook", p.128.

[96] McKinsey Global Institute, "People on the Move: Global Migration's Impact and Opportunity", p.71.

undocumented migrants have a large positive fiscal impact in the United States. This is because most of them are typically charged payroll taxes but hardly benefit from social services. The US Social Security Administration estimated that in 2010, tax revenues paid to the Funds by undocumented migrants exceeded disbursements to the same group by about US$ 12 Billion.[97]

The author of the landmark OECD study Jean-Christophe Dumont recapitulates the impact of migrants on public coffers as follows:

> "*Immigrants are thus neither a burden to the public purse nor are they a panacea for addressing fiscal challenges. They have a positive net direct fiscal position in most countries, except in those with a large share of older migrants. This means that they contribute to the financing of public infrastructure although admittedly to a lesser extent than the native-born.*"[98]

In summary, the evidence for Miller's claims is meager. At least under current conditions, according to hard facts, migrants do not pose a severe threat to welfare systems in wealthy liberal democracies. While there might be concerns about a negative impact on soft factors like social coherence and trust, the evidence on these effects is not explicit enough to fulfill Rawls' public order restriction. Especially, given that the impact of politically inclined populism are not a justifiable reason to legitimize the public order restriction. However, the extent to which political institutions and welfare provision are affected by migration is likely to depend on the number of people migrating.

Ad ii. The Magnitude of Migration in an Open Borders Regime

Carens takes the concern that the sheer magnitude of migration pressure could pose a threat to national security or liberal democratic values more serious. This is an important issue because the projected effects of an open borders policy on both, countries of origin and receiving states depend in no small degree on the number and composition of people who would move in an open borders scenario. There is a reasonable presumption that current inequalities in living standards would lead to mass movements of people towards wealthy states. If this turns out to be true, we certainly have universalistic reasons to deviate from open borders under non-ideal conditions. However, Rawls public order restriction demands from us to offer publicly justifiable ways of reasoning and evidence for our claims. Accordingly, the following section will aim to do so. It is difficult to give a precise projection of the effect of abolishing all borders regarding migratory movements, as any assessment must rely on estimates based on surveys, historical evidence or empirical models.

[97] McKinsey Global Institute, "People on the Move: Global Migration's Impact and Opportunity", p.70.
[98] Dumont, Jean-Christophe. *Can I get the bill,please?* 07 30, 2013. http://blogs.worldbank.org/peoplemove/can-i-get-bill-please (accessed 03 21, 2018).

There is some historical evidence indicating that people would move in relatively limited numbers. Teresa Hayter refers to open-border arrangements held up between several western countries and their former Caribbean colonies between 1950 and 1980. Despite the obvious push factors of better economic opportunities and higher wages in the US and England, only approximately 0.6 per cent of the Caribbean population moved. She then cites Bob Sutcliffe, who extrapolates that percentage to the global scale and assumes that it would amount to an increase of 24 million people which translates into a 2.4 per cent population growth in the industrialized countries. [99] These estimates would not give much reason to be concerned with overpopulation or harmful effects on culture and welfare systems. It seems advisable to consult more evidence on this matter.

Looking at a recent Gallup World Poll, 14 percent of the world's adults translating to nearly 710 Million people, indicated they would like to move to another country if given the opportunity. The willingness to migrate is particularly high in Least Developed Countries like Sierra Leone (62 percent) and Haiti (56 percent) but likewise numerous middle-income countries and even high-income countries such as Italy (32 percent) exhibit a high percentage of citizens desiring to migrate. Top desired destination countries are predominantly western liberal democracies such as the United States (21 percent), Germany (6 percent) and Canada (5 percent). Under the assumption, that immigration restrictions are the only relevant barrier to people's desire to migrate, the influx of new residents following an open- borders policy to the main destination countries would be enormous with 147 million in the United States and 39 million in Germany. It is unlikely, that immigration restrictions are the only relevant barrier hindering people to move as financial constraints and limited information at the origin are contributing factors. Moreover, examples like Italy whose citizens enjoy substantial freedom of movement within the European Union suggest that there still is a gap between the desire to migrate and actually doing so. Notwithstanding, given that increased migration of compatriots' cuts costs for those following later as it builds networks and increases information the number of people moving to western liberal democracies under an open-borders regime is likely to be immense.

To make sense of these different estimates it should be noted, that Sutcliffe's extrapolations are relatively outdated and the empirical adequacy of such an approach can be questioned. Given the survey results and in the light of enormous wage gaps as well as large persisting inequalities it appears reasonable to expect the numbers to be enormous. The large number of people from West African and South Asian countries trying to reach Europe across the Mediterranean despite the horrendous conditions and meager prospects for admission strengthens this point.

[99] Hayter, Teresa. *Open Borders: The Case against Immigration Controls.* London: Pluto Press, 2000., Here:p.153.

I conclude that under current conditions we can assume that the sheer amount of people trying to move to wealthier countries under an open borders scenario would justify the imposition of public order restrictions. Carens agrees to this but argues that there are important qualifications to this restriction in the sense that limitations would only be justified to the extent that they are necessary to maintain public order.[100]This would certainly not justify the highly restrictive migration policies currently in place but indicate a policy of fairly open borders. Similarly, regarding welfare services, several problems might arise due to entitlements acquired by citizens who contributed to these entities for years. But I believe that these effects are transitional matters that should not influence our ethical reasoning.

Finally, Carens draws three conclusions from his account that aim to demonstrate which reasons for restrictions on migration are impermissible according to a global original position:

1. Restrictions on migration cannot be justified "on the grounds that those born in a given territory or born of parents who were citizens were more entitled to benefit of citizenship than those born elsewhere or born of alien parents."[101]Carens conceives of the place of birth and lineage as natural contingencies that are "arbitrary from a moral point of view."[102]He further believes that the primary purpose of the original position is to avoid that these natural contingencies become manifest in an institutional order that allocates advantages to the lucky ones and disadvantages to the unfortunate.
2. Restrictions on migration cannot be justified under reference to the harmful economic effects of migration on current citizens. Firstly, because in a global original position it is the standpoint of the globally worst-off that takes precedence over others. Secondly, because in the Rawlsian framework, at least in the long run, it is impermissible to restrict liberty for the sake of economic gains.
3. Restrictions on migration cannot be justified on the grounds that a nation wants to preserve its distinct culture or history.

The first conclusion follows from a luck-egalitarian intuition that most global egalitarians take as their starting point.[103] The following section will present criticism of the luck egalitarian intuition behind the first conclusion. The second conclusion is questioned by *liberal nationalists* who assume that individuals have universally defensible primary duties to fellow citizens.

5.2 A Critique of the Luck Egalitarian Intuition

One important factor inducing *global egalitarians* to call for open borders is the profound impact of the place of birth on one's life prospects. While differences in income and wealth explained by individual choices and effort appear to be permissible, "it seems to be regarded as

[100] Carens, "Aliens and Citizens: The Case for Open Borders", p.260.
[101] Carens, "Aliens and Citizens: The Case for Open Borders", p.261.
[102] Carens, "Aliens and Citizens: The Case for Open Borders", p.261.
[103] Gillian Brock, "Contemporary Cosmopolitanism: Some Current Issues", p.10.

inequitable if individuals receive less than others because of factors beyond their control."[104]In fact, the large differences in living standards between the average Finn and the average Chadian can by no means be explained by individual decisions or effort. According to Arash Abizadeh, a liberal cosmopolitan view postulating that all human beings are free and equal necessarily entails questioning "all politically constituted boundaries that restrict freedom and entrench inequality via coercion."[105]

He further explicates:

> *"Liberal Egalitarians have said this loudly when it has come to feudal boundaries, gender boundaries, racial boundaries, and even religious boundaries. So it is no surprise that they should say it about the boundaries of state and citizenship: if all humans are free and equal, then the use of coercion to deny the freedoms and privileges of citizenship to some but not others appears to be an egregious violation of liberal egalitarian principle."* [106]

This luck egalitarian intuition awards *global egalitarianism* with considerable appeal. It starts from the established core assumption of *universality,* stipulating that the status of ultimate unit of concern attaches to every living human being equally. This is combined with the equally undoubtful empirical assumption that one's citizenship, obtained by being born in a particular country, has large effects on one's living standards. Furthermore, as Christopher Wellman points out, "an advocate of this argument need not deny the importance of freedom of association. She can freely concede that legitimate political states enjoy a presumptive right to exclude outsiders, since she need insist only that this presumptive right is overridden in this case by more weighty egalitarian considerations."[107]

Nevertheless, it has been objected that the assumption of all humans being equal does not necessarily entail a duty to eradicate all undeserved inequalities. The criticism is that luck egalitarianism overstretches the role of equality of goods in liberal theory. As Elizabeth Anderson indicates, egalitarianism should only be concerned with inequality if it results in oppression of the less well-off. She introduces a theory of *relational egalitarianism* and argues that "we should be fundamentally concerned with the relationships within which the goods are distributed, not only the distribution of goods themselves"[108]Anderson develops a theory of *democratic equality* that negatively aims to abolish oppression as well as it positively seeks to develop a social order in which persons stand in relations of equality. The objective is an

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[104] Le Grand, Julien. *Equity and Choice: An Essay on Economics and Applied Philosophy.* London: HarperCollins, 1991., p.86.

[105] Abizadeh, Arash. "Liberal Egalitarian Arguments for Closed Borders: Some Preliminary Critical Reflections." *Ethics and Economics*, 2006: 1-8, Here:p.1.

[106] Arash Abizadeh, "Liberal Egalitarian Arguments for Closed Borders: Some Preliminary Critical Reflections.",p.1.

[107] Wellman, "Freedom of Association and the Right to Exclude", p.59.

[108] Anderson, Elizabeth S. "What is the Point of Equality?" *Ethics*, January 1999: 287-337. Here: p.314.

equality that "regards two people as equal when each accepts the obligation to justify their actions by principles acceptable to the other, and in which they take mutual consultation, reciprocation, and recognition for granted."[109]

Wellman bridges her account with migration and presumes that adoption of it would affect views on justice in migration in two ways. Firstly, the arbitrary and undeserved inequalities in living standards between the average Finn and the average Chadian would not be conceived as inherently problematic. We would only have to take issue with them if they turned out to result in a relationship of oppression. Wellman takes a too narrow-minded view when he infers secondly, that we should be much less concerned with international inequalities because they are unlikely to translate into relations of dominance and oppression.[110]He infers that it can no longer be assumed that wealthy states need to open their borders as a response to enormous inequalities. Wellman bases this conclusion on the dubious assumption that a lack of relations between people in wealthy and people in developing countries gives little reason to be concerned about oppression and dominance.

Christopher Wellman does not argue that wealthy countries have no distributive duties towards poorer countries at all. In contrast, he believes that affluent political communities "must honour their Samaritan, restitutive, and egalitarian duties of distributive justice in order to be legitimate […]"[111]but argues that these communities are free in deciding how to discharge their duties. More precisely, he acknowledges "Samaritan" duties to those suffering from absolute poverty and restitutive duties resulting from a history replete with colonialism and imperialism. Finally, he concedes that in an interconnected world, relationships stretch beyond borders and therefore bind people from wealthy and less affluent parts of the world. These ties, arising from global movement of capital and goods as well as from global governance appear to put people in relationships in which they need to justify their actions by principles acceptable to the other to fulfill the conditions of Anderson's account.

It is puzzling, that despite being aware of the possibility that oppression cannot only arise among fellow citizens, Wellman declares:

> *"Conceding all of this does not weaken my commitment to a legitimate state's right to set its own immigration policy, because it seems to me that whatever duties of distributive justice wealthy states have to those abroad, they need not be paid in the currency of open borders."*[112]

He combines this claim with another inapt analogy in which he compares the duty of admitting needy foreigners with the duty of "Bill and Melinda Gates to open up their marriage to

[109] Anderson, "What is the Point of Equality?", p.313.
[110] Wellman, "Freedom of Association and the Right to Exclude", p.64.
[111] Wellman, "Freedom of Association and the Right to Exclude", p.67.
[112] Wellman, "Freedom of Association and the Right to Exclude", p.65-66.

impoverished strangers."[113]Accordingly, he infers that there is no such duty as long as those in question are willing to transfer an equivalent amount to those in need. We have discussed the shortcomings of these analogies in Section 3.4 but even if we grant them permissibility Wellman's argument is flawed. This is because he builds it on the ideal of relational egalitarianism that demands from us to be concerned with the relationships within which goods are distributed and not only their distribution. But Wellman appears to ignore this proviso when he assumes that the bearer of a distributive duty is free in deciding how to discharge it. In fact, simply transferring resources instead of reforming the underlying structural inequality appears to be the expression of a relationship shaped by dominance and oppression Anderson is concerned with. It might be objected to this that Anderson limits her account to the national sphere. Can we legitimately expand her account to the global sphere?

Although for the most part she refers to citizens, suggesting a domestic reading of her theory, she gives reasons to read her argument in a broader sense. This is when she indicates that increased interdependence caused by globalization binds all humans in an "international division of labor subject to assessment from an egalitarian point of view."[114]Cole reflects the implications of this as follows:

> *"The point is, of course, that national boundaries play a fundamental role in the division of labor, and therefore national boundaries themselves must fall under the principle of interpersonal justification. Far from supporting Wellman's position, Anderson's theory of democratic equality radically challenges it."*[115]

It is not clear, whether Anderson would go this far as she states that a theory of the international implications of democratic equality is beyond the scope of her work. In summary, relational egalitarianism certainly makes weaker claims towards egalitarian duties than the global egalitarian position. Nonetheless, I argue that it makes equally strong claims regarding the necessity of a legitimate defense of migration restrictions.

Some authors have changed perspectives to argue for migration restrictions on the basis that permeable borders could harm the poorest in the countries of origin who are less likely to migrate and more likely to suffer from loss of human capital. The next section will discuss *Global Sufficientarianism,* which is particularly concerned with basic needs fulfillment securing self-determination. Precisely, we will discuss Gillian Brock's work, who does not endorse porous borders because she questions the effectiveness of migration in discharging duties of global justice. My aim will be to demonstrate that her skepticism arises from mostly outdated empirical evidence as well as a false understanding of migration.

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[113] Wellman, "Freedom of Association and the Right to Exclude", p.66.
[114] Anderson, "What is the Point of Equality?", p.321 Supra Note 78.
[115] Cole, "Open Borders: An Ethical Defense", p.185.

5.3 Global Sufficientarianism and Skepticism about Migration

Another critique of *Global Egalitarianism* comes from *Sufficientarians* who argue that a conception of global justice must ensure that all humans are able to fulfill their basic needs, secure self-determination and enjoy a set of human rights and basic freedoms. Accordingly, they identify less demanding distributive duties than *Egalitarians* and argue that global inequalities need not be troubling per se, but only if they lead to some people falling below a minimum line.[116]

Brock describes the uniting values all cosmopolitan accounts of global justice need to be committed to as follows:

> "*Because a cosmopolitan is committed to the equal moral worth of all human beings, she would need to endorse principles of justice that (somehow) are concerned with the well-being of every individual person (no matter what their group memberships), and these principles of justice would need to have wide scope."*[117]

It follows that *Egalitarians* and *Sufficientarians* largely agree about the scope of justice. Accordingly, Brock complies with the use of a single construction of a global original position with a *veil of ignorance* shielding representatives from knowledge about which state the represented citizens inhabit. She designs her thought experiment in a fashion that is easily imaginable because it is close to our current real-world conditions. As such, the world is divided into communities, with soft divisions along religious, cultural and linguistic lines and sharp divisions along political lines. Moreover, representatives are unaware of the state's character and territory as well as the attributes of the people they represent.[118]Brock significantly parts from *Egalitarians* regarding the contents of justice. She doubts that a global difference principle would be chosen from a global original position and instead introduces a less demanding needs-based minimum floor principle.

The principal task the delegates at her imaginary conference would have is to agree on a *basic* framework governing the world's inhabitants.[119]She further believes that two guidelines of roughly equal importance would stand at the center of this framework. Firstly, a presumption towards ensuring that all people enjoy basic liberties and secondly, that all people are to be protected from risks of serious harms. Brock asserts that people will also care about enjoying basic freedoms such as freedom from assault and coercion as well as "*some* basic freedoms governing movement, association, and speech."[120]She further acknowledges that delegates, in

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[116] Brock, "Contemporary Cosmopolitanism: Some Current Issues", p.9.
[117] Brock, Gillian. *Global Justice- A Cosmopolitan Account.* New York: Oxford University Press, 2009,Here:p.45.
[118] Brock, "Global Justice – A Cosmopolitan Account", p.47.
[119] Brock, "Global Justice – A Cosmopolitan Account", p.50.
[120] Brock, "Global Justice – A Cosmopolitan Account", p.50.

recognition of the fact that they might end up in societies whose "major organizing values, principles, and commitments"[121] they disagree with have an interest in freedom of dissent as well as freedom to exit a society. Brock does not explicate what she specifically means here but I believe it is reasonable to infer that she is willing to grant freedom to emigrate from illiberal as well as malfunctioning and thus unproductive political regimes. When describing the value of basic liberties, Brock points out that delegates have a central interest in including freedom of association and movement among the basic liberties.[122]Moreover, the second guideline would induce the hypothetical decision makers to ensure protection against risks associated with the harmful actions of reckless multinational corporations. These harms can either take the form of negative externalities such as air and water pollution or deleterious impacts on labor markets with the effect that wages would fall at "bare or below subsistence levels".[123]Given what is at stake, Brock deduces that the decision-makers would surely deem it reasonable to have certain guaranteed minimal opportunities. It is concluded then, that these guidelines would serve as a measure according to which social and political arrangements would be developed. How does this translate to her view on migration?

Much of the previous reads as if Brock would endorse an open borders policy to enable people to meet their basic needs. The conditions she mentions that give delegates strong reasons to plead for freedom of movement, such as illegitimate despotic governments and reckless multinational corporations destroying people's livelihoods, are certainly fulfilled. Moreover, she argues that people should have freedom to exit a society if they do not agree with principles and values predominant in it. How can we make sense of freedom to exit if there is no guaranteed freedom to enter another society? Brock admits that allowing people to move appears to be of crucial importance to enable them to meet their basic needs and protect their basic liberties. Especially, given the fact that freedom of movement is just one of these basic liberties. However, Brock reminds that freedom of association represents another basic liberty and in ideal theory we cannot know which one rules out the other.[124]Her main concern with migration, however, is an empirical one. Brock belongs to a group of theorists who believe that under current conditions more porous borders could be detrimental to endeavors promoting global justice.[125] This leads to the contentious claim that migration might aggravate the situation

[121] Brock, "Global Justice – A Cosmopolitan Account", p.50/51.
[122] Brock, "Global Justice – A Cosmopolitan Account", p.153.
[123] Brock, "Global Justice – A Cosmopolitan Account", p.51.
[124] Brock, "Global Justice – A Cosmopolitan Account", p.191.
[125] See Pogge, Thomas. "Migration and Poverty." In *Citizenship and Exclusion*, by Veit Bader, 12-27. Palgrave Macmillan, 1997.;Miller ,"Immigration: The Case for Limits" and Ypi, Lea. "Justice in Migration: A Closed Borders Utopia?" *The Journal of Political Philosophy*, November 18, 2008: 391-418.

of the globally worst-off due to the perpetuation of structural dependency through remittances as well as the so-called *Brain Drain*[126]phenomenon.[127]

Brock follows a pessimistic, structuralist view on migration that dominated academic research from the 1970s to the late 1990s and has negatively influenced political theorist's perception of migration.[128]More recently, there has been a shift towards "functionalist, agency-oriented and neoliberal views emphasizing the efficiency of (free) markets and the capacities of individuals to improve their own lives and bring about structural changes."[129]Brock takes a simplistic view on migration in the sense that she conceives of it primarily as an escape without return from unproductive and malfunctioning societies.

This becomes apparent when she asks:

> "*If people are unable to meet their basic needs well, or their basic liberties are not adequately protected, or few social or political arrangements are in place to support people in these endeavours, is the situation best improved if they are permitted to move to a country in which meeting basic needs is easier and basic liberties are better protected?"*[130]

Brock acknowledges that this might certainly be the case from the migrant's point of view. However, she stresses that migration could have harmful effects on current and near-future generations of those who remain behind. Given her needs-based minimum floor principle it is comprehensible that she is particularly concerned with the alleged harmful effects of migration on a country's education and health care sector. Nevertheless, the following section aims to rebut these skeptical views and demonstrates that they rest upon largely outdated empirical evidence and a false understanding of migration. It will further be argued, that easing migration restrictions can be an effective measure to alleviate poverty, mitigate global inequality and is mandated by a liberal egalitarian commitment to moral equality and individual autonomy. To be sure, serious concerns about loss of skilled labor and stressed health care sectors need to be dealt with, but restricting migration turns out to be neither effective nor the least intrusive measure to do so.

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[126] I will use this term because of its familiarity want to remind however that its pejorative tone has been criticized by academics like Michael Clemens

[127] See Brock, Gillian. "Immigration and Global Justice: What kinds of policies should a Cosmopolitan support?" *Ethics&Politics*, 2010: 362-376 and see Gillian Brock, "Immigration in Global Justice- A Cosmopolitan Account", pp.190-212.

[128] De Haas, "Migration and Development: A Theoretical Perspective", p.228.

[129] De Haas, Hein. *Remittances, Migration and Development: Policy Options and Development: Policy Options and Policy Illusions.* Here: p.1.

[130] Brock, "Global Justice – A Cosmopolitan Account", p.192.

5.3.1 Reassessing the Impact of Migration on Countries of Origin

The people remaining in developing countries benefit from migration mainly through remittances, positive effects on human, physical and social capital as well as enhanced political accountability. The magnitude of these effects depends on the skill levels of migrants, whether they move temporarily or permanently and on their legal situation abroad.[131]

Remittance flows to developing countries amounted to US$429 billion in 2016, exceeding the total amount of Official Development Assistance (ODA) by a margin of more than US$ 300 billion and providing a much more stable source of capital inflow than Foreign Direct Investment (FDI).[132] Generally, remittances are counter-cyclical and hence mitigate income shocks caused by economic and political crisis as well as natural disasters.[133]Compared to development aid, they are much less prone to embezzlement and corruption as they circumvent the hands of government officials. From a macroeconomic perspective, there is mixed, sometimes conflicting evidence on the growth effects of remittances.[134]In part, this might be explained by the counter-cyclical nature of remittances. In times of economic recession remittances tend to increase while they fall in boom periods. This makes it difficult for researchers to identify the way in which causality runs.[135] Brock argues that remittances are detrimental to economic growth as they reduce incentives to work, depress economic activity and are largely spend on consumer goods instead of savings or investments.[136] Moreover, she notes that private remittances are not invested in public goods, such as infrastructure, schools and roads and therefore do not tackle structural poverty.[137] By now, there is plenty of evidence refuting Brock's contentions as several studies indicate that remittances are more likely to be invested than other sources of income and find little evidence of a relevant 'dependency' effect.[138] But Brock appears to miss a much larger point. Migration is a household response to mitigate income risks, not a national development policy or windfall income accruing to fortunate individuals. Migrant households invest large sums of money in the first place to leave a country because it does not offer sufficiently secure economic opportunities. In return, they expect remittances to provide financial stabilization and insurance against ill-functioning

[131] World Bank Group, "Migration and Development", p.16.
[132] World Bank Group. *Migration and Remittances.* Washington D.C., April 2017, Here.p.2. It should be noted that estimates on remittances flows vary due to informal channels.
[133] De Haas, Hein. *Remittances, Migration and Development: Policy Options and Development: Policy Options and Policy Illusions.* Here: p.4.
[134] World Bank Group, "Migration and Development", p.17.
[135] World Bank Group, "Migration and Development", p.18.
[136] Brock, "Immigration and Global Justice: What kinds of policies should a Cosmopolitan support?" ,p.368.
[137] Brock, "Immigration and Global Justice: What kinds of policies should a Cosmopolitan support?" ,p.369.
[138] Clemens, Michael, and Timothy Ogden. "Migration as a Strategy for Household Finance: A Research Agenda on Remittances, Payments, and Development." *CGD Working Paper,* February 2014: 1-39, Here: p.6/p.8.

markets and a lack of social security systems.[139] It is obvious, that the larger economic effects of migration depend on the broader institutional setting. As De Haas points out:

> *"Although remittances play an increasingly vital role in securing and actually improving livelihoods of millions of people in the developing world, it would be naïve to expect that remittances alone can solve more structural development obstacles, such as an unstable political environment, misguided macro-economic policies, unsafety, legal insecurity, bureaucracy, corruption and deficient infrastructure."*[140]

Thus, in assessing the effectiveness of migration to improve people's livelihood the focus should be on household indicators. Numerous studies have confirmed that remittances help households to diversify and improve their incomes. Especially in the case of poorer families, large shares of remittances are spent on consumer goods like food, clothing and rent.[141] This leads Brock to the assertion that remittances do not enhance people's abilities to seek a livelihood.[142] But not only do remittances also provide relevant funds for better healthcare and education which causes infant mortality to shrink and increases schooling and literacy rates.[143] In poor households increased expenditure on better nutrition, housing and hygiene significantly enhances people's productivity, wellbeing and capabilities.[144]

But does this translate to a decrease in general poverty rates against the background of a very selective global migration regime? Moreover, is Pogge not right in stating that remittances are "more likely to increase than decrease domestic inequality"?[145]

There is substantial evidence that transnational migration does alleviate poverty. Adams and Page analyzed cross-country data for 71 nations and conclude that international migration significantly contributes to reducing the level, depth and severity of poverty.[146] Put in numbers, their estimates suggest that a 10 percent increase in the share of emigrants in a country's population reduces the poverty rate by 2.1 percent.[147] The evidence on the effects of remittances on inequality is mixed with notable indication that transfers have decreased inequality in Latin America.[148]Two factors explain why despite selectivity in admission, international migration does not only benefit the wealthier citizens of origin countries.[149] Firstly, due to the cost-cutting network effects of migration leading to lower costs of migration the more people from a certain

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[139] De Haas, "Migration and Development: A Theoretical Perspective", p.228.
[140] De Haas, "Migration and Development: A Theoretical Perspective", p.41.
[141] World Bank Group, "Migration and Development", p.17.
[142] Brock, "Immigration and Global Justice: What kinds of policies should a Cosmopolitan support?" ,p.370.
[143] De Haas: "Remittances, Migration and Development", p.3.
[144] De Haas, Migration and Development Theory, p.41.
[145] Pogge, "Migration and Poverty", p.15.
[146] See Adams, R.H., and J. Page. "Do international migration and remittances reduce poverty in developing countries?" *World Development*, 2005: 1645-1669.
[147] Poverty defined as living on less than $1 (in PPP) a day
[148] See Acosta, P.A., C. Calderon, P. Fajnzylber, and H. Lopez. "What is the Impact of International Remittances on Poverty and Inequality in Latin America?" *World Development*, 2008: 89-114.
[149] Kieron Oberman, "Poverty and Immigration Policy", p.242.

community or country move. As a result, with an increase in overall numbers of migrants the composition of households benefitting from migration becomes more evenly distributed and migrant selectivity decreases.[150] Secondly, poorer non-migrant families benefit indirectly through positive effects on wages, prices, and employment in migrant sending communities.[151] Therefore, remittances generally reduce poverty. Similarly, the initially negative effects of remittances on income equality are generally mitigated, if not reversed with the establishment of migrant networks and less selective migration restrictions.[152]

Next, we turn to the hotly debated *Brain Drain* phenomenon which describes the alleged negative effects associated with large emigration of highly skilled labor from developing countries. While loss of human capital generally decreases productivity and growth perspectives, there is a specific concern about the emigration of highly skilled teachers, doctors or scientists whose work usually generates positive social externalities.[153] People in these occupations have a direct impact on the ability of fellow citizens to prosper and develop as autonomous agents. A good education and health system are the backbone of any society and a prerequisite for human wellbeing. Often, the doctor to patient ratios for sub-Saharan African countries are contrasted with the number of physicians leaving these countries behind to highlight the problem. Moreover, these doctors and health workers are often recruited by wealthy nations with very extensive healthcare provision. Gillian Brock instances that Europe and North America with only 21 percent of the global population, hold 45 percent of the world's doctors and 61 percent of its nurses. This compares to Africa with 13 percent of the global population and only 3 percent of its doctors and 5 percent of its nurses.[154]

The numbers are in fact striking. Especially small countries in sub-Saharan Africa, poorer parts of Asia and the tropics lose about one-third to half of their college graduates to wealthier nations.[155] Another study buttresses these findings and estimates that low-income countries lose about one fifth and small island nations about 40 percent of their high-skilled workers to high-income countries.[156] Related to health professionals, there is evidence that in 2006 15 percent of locally trained doctors from 21 sub-Saharan African countries had left to the US or Canada.[157] This has lead researchers to argue that limiting skilled migration could improve the strained health sectors of these countries and improve health outcomes like infant mortality and vaccination rates.[158] It is not only suspected that emigration might worsen access to healthcare

[150] De Haas: "Remittances, Migration and Development", p.6.
[151] De Haas, "Migration and Development Theory", p.40.
[152] De Haas, "Migration and Development Theory", p.41.
[153] World Bank Group, "Migration and Development", p.20.
[154] Brock, "Global Justice – A Cosmopolitan Account", p.200.
[155] McKinsey Global Institute, "People on the Move: Global Migration's Impact and Opportunity", p.73.
[156] World Bank Group, "Migration and Development", p.20.
[157] McKinsey Global Institute, "People on the Move: Global Migration's Impact and Opportunity", p.73.
[158] World Bank Group, "Migration and Development", p.20.

in developing countries but additionally that the benefits of costly investments in education would be reaped by the richest countries.

Recently however, the universality of the *Brain Drain* as a categorically harmful phenomenon has been challenged. Some authors have conceded that the effect exists but is truly extensive only in very few countries.[159] Others have raised doubts about the extent to which skilled labor migration hurts those left behind. As Clemens points out, "if human capital externalities from health workers were a first-order determinant of basic health conditions, African countries experiencing the largest outflows of doctors and nurses would have systematically worse health conditions than other parts of Africa. In fact, those countries have systematically better health conditions."[160] Similarly, in the past twenty years the ten countries with the highest rates of skilled emigration like Haiti, Gambia and Sierra Leone have witnessed increases in their stock of skilled labor.[161] It can be objected that the counterfactual is unclear and with restrained migration the increase in skilled labor would be even higher. But there is solid evidence that the opposite is true. If being highly skilled allows people to move to wealthier countries, then this creates a strong incentive to invest more in education. This explains why remittances have often raised educational expenditure in receiving households with notable positive effects on school enrollment, particularly among girls.[162] As not everyone will eventually make the move, this effect can even offset departures and lead to a *Brain Gain* effect.[163] Notably, migration of highly-skilled professionals can have large positive externalities as knowledge, technology and ideas are exchanged as well as trade relations and business networks deepen.[164] Movement of people reduces transaction costs, legal barriers and informational asymmetries and thus facilitates trade, foreign direct investments and technology spillovers. The Asian Tigers Republic of Korea, China and Taiwan and more recently India and Vietnam have benefitted to a large degree from their skilled diasporas.[165]

Despite this broad evidence refuting her opinion, Brock summarizes her view as follows:

> *"Decreasing the numbers of immigrants permitted to enter developed countries may then have a number of good consequences for less-developed countries – for instance, as we have just seen, it would help them retain skilled workers, and thereby retain*

[159] De Haas: Migration and Development Theory, p.41.
[160] Clemens, Michael. "Economics and Emigration: Trillion-Dollar Bills on the Sidewalk?" *Journal of Economic Perspectives*, 2011: 83-106. Here:p.91.
[161] See Sandefur, Justin. *Migration and Development: Who Bears the Burden of Proof?* March 19, 2014. http://oxfamblogs.org/fp2p/migration-and-development-who-bears-the-burden-of-proof-justin-sandefur-replies-to-paul-collier-2/ (accessed 03 22, 2018).
[162] De Haas: "Remittances, Migration and Development", p.9.
[163] Clemens, "Economics and Emigration: Trillion-Dollar Bills on the Sidewalk?", p.90.
[164] World Bank Group, "Migration and Development", p.20.
[165] World Bank Group, "Migration and Development", p.19.

resources crucial for helping to improve prospects for better lives in struggling countries."[166]

Let us for now assume the empirical premise that the loss of skilled labor outweighs the *Brain Gain* effect. Can we infer from this that restricting migration would improve the situation of the worst-off in developing countries? I am not convinced by this assertion. On the one hand, it omits that the current migration regime might be highly complicit in the phenomenon due to its selectivity.[167] On the other hand, Michael Clemens points out that the most serious lack of healthcare and education services in developing countries occurs in rural areas. This is particularly troubling because generally the more vulnerable and poorer people live in these areas. In the same time, skilled workers like physicians and teachers congregate in wealthier urban areas to reap the yields of their investments in education. Just as people migrate internationally to seek better opportunities and stabilize their incomes, they migrate domestically for the very same reasons. This highlights two crucial points. Firstly, on a domestic level, it would seem highly absurd to infer from this skewed distribution that skilled people and doctors should be locked in rural areas. Secondly, that there is barely any evidence that restricting international migration could have a positive impact on the poor provision of healthcare and education in rural areas. Thus, even if one accepts Brock's structuralist viewpoint on migration there are few reasons to believe that locking skilled people in relatively unproductive countries translates to economic growth or improved welfare and healthcare provision.[168]

This is not to argue that the effects of skilled labor migration cannot be harmful in some settings. In fact, one notable study suggests that skilled migration generally increases the number of skilled professionals by 3 percent, although smaller states are likely to witness negative effects.[169] But as I have pointed out, skilled labor migration and poor healthcare provision are rarely causally related but much more often symptoms of weak institutions, misdirected training policies as well as austerity measures imposed by structural adjustment programs.[170]

A third strand of research investigates the effects of migration on political institutions. Once more, the traditional view is rather sceptic. Hirschman introduced a "voice" vs. "exit" dichotomy suggesting that people unsatisfied with the political system would either protest or emigrate.[171] Emigration is then seen as detrimental to building better institutions as it represents a safety valve. According to this narrative, critical voices and political opposition would simply

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[166] Brock, "Global Justice – A Cosmopolitan Account", p.203.
[167] Cole, Phillip. "The right to leave versus a duty to remain: Health care workers and the 'brain drain'." In *The International Migration of Health Workers*, by R. Shah, 118-129. Palgrave Macmillan, 2010.
[168] Clemens, Michael. "Skill Flow: A Fundamental Reconsideration of Skilled-Worker Mobility and Development." *CGD Working Paper*, August 2009: 1-47.
[169] Kieron Oberman, "Poverty and Immigration Policy", p.243.
[170] USAID. *The Health Sector Human Resource Crisis in Africa: An Issues Paper.* 2003. Here:p.1
[171] See Hirschman, Albert O. *Exit, Voice, and Loyalty.* Cambridge: Harvard University Press, 1970.

migrate instead of speaking up for more political accountability. This argument is sometimes combined with a *Brain Drain* argument stating that the loss of skilled and educated people is particularly harmful because they contribute most to institution building. Apparently, the validity of this argument depends on the degree to which the *Brain Drain* effect is assumed. More recent research highlights that diaspora organizations can exert influence on foreign policy related to their countries of origin. This lobbying might induce governments to reduce diplomatic relations, block development aid or to impose sanctions on illegitimate governments.[172] Moreover, migration allows people from authoritarian regimes to become acquainted with democratic political systems and division of powers. There is robust evidence that the circulation of knowledge and ideas is not limited to technology but includes social norms and political opinions.[173] It seems then that migration represents an important lever to build and strengthen liberal institutions across the globe and thus improve the lives of many people who remain in countries of origin.[174]

5.3.2 Reassessing Skepticism about Migration

In summary, I believe that the evidence for a direct causal relationship between emigration and poor healthcare is too weak to make a normative case for limiting skilled labor migration. Even more, there is hardly any evidence that locking skilled professionals in unproductive places would make anyone better off. Moreover, besides discriminating against people based on their countries of origin, the effectiveness of so-called "ethical recruitment policies" or attempts to restrict skilled migration has been questioned.[175] Instead of limiting migration the focus should be much more on large scale investments in education and training across the globe. In cases where there is hard evidence that small nations suffer from the emigration of skilled labor, compensation schemes could serve as a remedy. These schemes would obligate wealthy nations to offer technical and financial assistance to cover training costs of workers they recruit and invest in additional training programs to help to mitigate detrimental effects.[176]

Brock acknowledges this but seems to confront the reader with false alternatives to strengthen her point of view. She asserts that she is "skeptical that increasing immigration (in isolation) could constitute progress with respect to better realizing global justice, especially in terms of positioning developing countries to enable their citizens to meet their needs."[177] But this is

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[172] See Docquier, F., E. Lodigiani, H. Rapoport, and M. Schiff. "Emigration and the quality of home country institutions." *IRES*, September 2010: 1-47.

[173] See Barsbai, T., H. Rapoport, A. Steinmayr, and C. Trebesch. "The Effect of Labor Migration on the Diffusion of Democracy: Evidence from a Former Soviet Republic." *CEPII Working Paper*, September 26, 2016: 1-59.

[174] Batista, Catia, and Pedro C. Vicente. "Do Migrants Improve Governance at Home? Evidence from a Voting Experiment." *The World Bank Economic Review*, 2011: 77-104. Here: p.79.

[175] World Bank Group, "Migration and Development", p.21.

[176] Brock, "Global Justice – A Cosmopolitan Account", p.202.

[177] Brock, "Global Justice – A Cosmopolitan Account", p.211.

beside the point. We need not argue that migration is a panacea, which solves the problems of global inequalities, despotic regimes, and underdevelopment all by itself to declare that global justice demands more porous borders. Clearly, migration is just one of many essential reforms mandated by a cosmopolitan conception of global justice.[178] But this strengthens merely the point that migration needs to be embedded in a broader account of global justice.

In conclusion, it seems that Brock has sacrificed the proviso for freedom of movement inherent in her theory of global justice on grounds of unclear empirical claims about the prospective harms of migration. In the words of Joseph Carens, this represents "a dramatic departure from the liberal tradition in general and from the specific priority Rawls attaches to liberty even under non-ideal conditions."[179] I want to stress that my argument here does not intend to defend current immigration policies. In contrary, in *Section 7,* I will argue that they are shaped by power inequalities and legally enshrine unjustified coercion and domination. Brock might agree to this but with her endorsement of more rather than less restrictive migration policies she draws a mistaken conclusion. From what I have expounded in this section, it follows that any well-informed theory of *Liberal Cosmopolitanism* has strong grounds to endorse less restrictive migration policies than currently in place.

6. The Law of Peoples and Justice in Migration

So far, we have focused on theories of global justice which modified the Rawlsian framework to deduce principles of justice from a global original position. Strikingly, Rawls himself thought differently about the global application of his theory and developed a much less egalitarian conception of global justice in *The Law of Peoples*. He takes a different starting point and seems to be concerned with *international justice* rather than with *global justice*. This means that in contrast to *Liberal Cosmopolitanism*, not individuals but peoples are the principal agents of justice in the global sphere of Rawls theory. It follows that the global original position does not convene individuals behind a veil of ignorance to identify principles of justice regulating "the relations between all human beings in the world and to ensure their individual well-being."[180]Accordingly, opposing Beitz, Rawls denies a global application of the two principles he identified in *A Theory of Justice*. Instead, Rawls aims to determine principles guiding liberal peoples in their dealings at the international level. To what extent shall they be tolerant towards illiberal peoples? What are their responsibilities towards developing peoples and how shall assistance to them look like?[181] These are some of the questions Rawls is concerned with. This

[178] Brock's work covers important reforms in the fields of trade, development aid, taxation and military interventions; See Brock, "Global Justice – A Cosmopolitan Account"
[179] Joseph Carens, Aliens and Citizens, p.261
Carens refers to Frederick Whelan who emphasizes the deep roots of the right to emigrate in liberal tradition in Frederick Whelan, "Citizenship and the Right to Leave".
[180] Forst, "Towards a Critical Theory of Transnational Justice", p.161.
[181] Brock, "The Original Position in the Law of Peoples", p.247.

methodological shift has wide-ranging consequences on Rawls' viewpoint regarding global egalitarian duties and the legitimacy of migration restrictions.

It is important to point out that Rawls distinguishes peoples as either *well-ordered* or *not well-ordered peoples.* Rawls believes that *liberal peoples* and *decent peoples* can be conceived of as *well-ordered peoples,* while *outlaw states, societies burdened by unfavorable conditions* and *benevolent absolutisms* are seen as *not well-ordered peoples*.[182] Interestingly, decent peoples are not liberal but they have a "decent consultation hierarchy", defend a limited set of human rights and their legal systems endorse an idea of justice "according to which there is a common good."[183]

Rawls' deliberations develop in several stages in which he makes use of multiple original positions to demonstrate which principles *well-ordered peoples* would agree on as guidelines to their international conduct.[184] He starts his reasoning with liberal peoples and employs a domestic original position to identify principles determining their basic structure. Given the same conditions of impartiality, Rawls concludes that the parties would agree on the same two principles of justice he identified in *A Theory of Justice.* Next, Rawls reconvenes the parties for a second original position, this time as representatives of peoples, to deal with international relations among societies.[185] It is important to note, that these representatives are positioned behind a veil of ignorance that makes them ignorant of biasing factors such as "the size of the territory, or the population, or the relative strength of the people whose fundamental interests they represent."[186] Rawls believes that eight principles would be chosen, which respect peoples as free and equal and hence highlight the importance of self-determination and political autonomy.[187] Moreover, three multilateral cooperative organizations would be established. One to ensure fair trade, the second institutes a cooperative banking system and the third takes the United Nations as a model.[188] Thereupon, in a distinct application of the original position, Rawls illustrates that decent peoples would choose the same principles and organizations.

Rawls account has been criticized for its tolerance towards illiberal political regimes. Cosmopolitans have argued that Rawls sacrificed the liberal proviso of treating every human as a unit of equal moral concern for the sake of stability and larger acceptance. Most relevant for my argument are two features of Rawls theory I will discuss each in turn:

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[182] Rawls, John. *The Law of Peoples with "The Idea of Public Reason Revisited".* Cambridge: Harvard University Press, 1999., p.4.
[183] Rawls, "The Law of Peoples", p.4.
[184] Brock, "The Original Position in the Law of Peoples", p.249.
[185] Pogge, Thomas. "An Egalitarian Law of Peoples." *Philosophy and Public Affairs,* 1994: 195-224., Here:197.
[186] Rawls, "The Law of Peoples", p.32.
[187] Rawls, "The Law of Peoples", p.37.
[188] Rawls, "The Law of Peoples", p.42.

i. There is a "duty to assist burdened societies to become full members of the Society of Peoples and to be able to determine the path of their own future for themselves"[189] but there is no Global Difference Principle in Rawls theory.

ii. There is no sustained focus on migration in the *Law of Peoples* because Rawls simply assumes that it plays no role in ideal theory. Notwithstanding, Rawls offers several reasons why nations are legitimized to restrict migration under non-ideal conditions.

6.1 The Duty to Assist in the Law of Peoples

Rawls believes that certain societies, he calls *burdened societies* "lack the political and cultural traditions, the human capital and know-how, and, often, the material and technological resources needed to be well-ordered."[190] According to the eighth principle identified by the Society of Peoples, well-ordered peoples have a duty to help those burdened societies "to be able to manage their own affairs reasonably and rationally and eventually to become members of the society of well-ordered peoples."[191] Rawls makes clear however, that he does not conceive of this *duty to assist* as a global difference principle regulating economic and social inequalities. In contrast, he states that any distributive duties cease to exist as soon as a people reaches the status of being well-ordered. This is the case although this society might still be relatively poor.[192] Rawls criticizes the global difference principle for not having a target and a cutoff point because he believes that it makes wealthy societies liable for poor and shortsighted policy choices made in other societies.[193]

To understand why Rawls opposes global distributive duties we need to scrutinize his understanding of economic growth and development. Rawls adheres to a theory of *explanatory nationalism*, which assumes wealth determinants to be exclusively endogenous. As Rawls puts it:

> "*I believe that the causes of the wealth of a people and the forms it takes lie in their political culture and in the religious, philosophical, and moral traditions that support the basic structure of their political and social institutions, as well as in the*

[189] Rawls, "The Law of Peoples", p.118.
[190] Rawls, "The Law of Peoples", p.106.
[191] Rawls, "The Law of Peoples", p.111.
[192] Rawls, "The Law of Peoples", p.111.
[193] Rawls, "The Law of Peoples", p.117
Rawls illustrates this with an example of two countries of which one decides to industrialize while the other prefers a "more leisurely society"; when the former becomes wealthy as a result of its industrialization efforts Rawls concludes that it would not be acceptable to tax their wealth for the benefit of the other country that decided not to industrialize.

industriousness and cooperative talents of its members, all supported by their political virtues."[194]

This supposition has induced widespread criticism among authors of liberal cosmopolitan stance. Seyla Benhabib criticizes that Rawls gives little social scientific evidence to defend his views and suspects that they rather follow from his methodological assumption of politically autonomous peoples than real-world observations.[195] She points out that his account is highly oblivious of a history replete with European colonialism and Western imperialism. It seems then that Rawls ignores "both the extent to which unfavorable conditions may result from factors external to the society and the fact that there are all sorts of morally relevant connections between states, notably that they are situated in a global economic order that perpetuates the interests of wealthy, developed states with little regard for the interests of poor, developing ones."[196]

Thomas Pogge has offered convincing arguments to rebut the assumptions underlying Rawls' explanatory nationalism.[197] He does not deny the role political elites play in perpetuating corruption and political mismanagement, but he argues that their harmful influence and power are symptoms of a global institutional order that largely benefits wealthy countries and is supported by them. Specifically, Pogge points to two important aspects of the current global order with very detrimental effects on the political and economic institutions of developing countries. He begins his account as follows:

"*Any group controlling a preponderance of the means of coercion within a country is internationally recognized as the legitimate government of this country's territory and people - regardless of how this group came to power, of how it exercises power, and of the extent to which it may be supported of opposed by the population it rules."*[198]

Beside its sovereignty, such a group disposes of two substantial privileges, the *international borrowing privilege,* allowing the group to borrow money from international lenders, and the *international resource privilege* giving them authority over the country's commodities. Pogge reveals how detrimental these privileges are to a country's political stability and institutions when he indicates that both privileges spur corruption, strongly incentivize coup attempts and destabilize resource-rich countries. In the same time, wealthy countries benefit from these privileges because they keep commodity prices down. He concludes:

[194] Rawls, "The Law of Peoples", p.108.
[195] Benhabib, "Distributive Justice, Migration and the Law of Peoples, p.1777.
[196] Brock, "The Original Position in the Law of Peoples", p.254.
[197] See Pogge, "An Egalitarian Law of Peoples." and Pogge, "World Poverty and Human Rights"
[198] Pogge, "World Poverty and Human Rights", p.118.

> "*I have shown how two aspects of the global economic order imposed by the wealthy societies and cherished also by authoritarian rulers and corrupt elites in the poorer countries, contribute substantially to the persistence of severe poverty.*" [199]

In stark contrast with Rawls, Pogge infers that wealthy societies perpetuate a global order that hinders *burdened societies* to eradicate poverty and become *well-ordered societies*. It follows then that wealthy states do not primarily have duties to assist but duties to abolish an unjust global order which perpetuates power imbalances and destitution.

In conclusion, I believe that we need not assert that development is entirely attributable to international factors, in fact Pogge does not, to rebut Rawls claims because they are far too strong and ignore various influential factors.[200] In our state of the world, it is highly implausible to ignore global interdependence and thus to assume that states are entirely and solely responsible for their economic welfare. These findings make Rawls idea of limiting egalitarian duties to mere assistance highly questionable. This view however, has significant normative implications on Rawls' account of migration which we will discuss in the next section.

6.2 Migration in the Law of Peoples

Rawls assumes that people are autonomous and self-sufficient and can thus be viewed as "complete and closed social systems."[201] They are ideally defined as "liberal peoples" and Rawls ascribes three basic features to them. Firstly, they have a "reasonably just constitutional democratic government", secondly, they are "united by what Mill called 'common sympathies'; and finally, a moral nature."[202] Rawls aims to distinguish peoples from states to avoid that his theory adopts features of realist international theory which denies morality in the international sphere. But Benhabib points out that Rawls' attempt to do so fails because the feature of having a constitutional government or the competence "to observe treaties and undertakings" can hardly be thought of without a modern state apparatus.[203] More problematically, Rawls' idea of clearly distinguishable peoples has two implications on his stance on migratory movements.

Firstly, Rawls assumes "that the state-centric model of territorially delimited nations, with fairly closed and well-guarded borders would continue to govern our thinking in these matters."[204] As such, political membership is taken as a presupposition of justice rather than a contingency that a theory of justice needs to deal with. Accordingly, Rawls is indifferent to the historical arbitrariness of boundaries and states:

[199] Pogge, "World Poverty and Human Rights", p.119.
[200] Brock, "The Original Position in the Law of Peoples", p.264.
[201] Rawls, John. *Political Liberalism.* Columbia University Press, 1993. Here: p.40/41.
[202] Rawls, "The Law of Peoples", p.23.
[203] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1765.
[204] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1765.

> "*An important role of a people's government, however arbitrary a society's boundaries may appear from a historical point of view, is to be the representative and effective agent of a people as they take responsibility for their territory and its environmental integrity, as well as for the size of their population."*[205]

It seems then that Rawls simply accepts the large distributional significance of borders as an irrelevant contingency. We have seen that this position is difficult to defend from an egalitarian viewpoint because it gives large institutional significance to a historically arbitrary allocation.[206]

Secondly, Benhabib points out that Rawls' assumption of peoples as unified by common sympathies and a moral nature is empirically inadequate because it neglects the "significant internal division of human societies along the lines of class, gender, ethnicity, religion, language, etc." for the sake of a nationalist notion of national identity.[207] But even if we accept that Rawls conception of people is just an idealizing assumption, Benhabib criticizes that it represents a glaring departure from Kant's cosmopolitan law. Moreover, she stresses that these assumptions are incompatible with crucial premises of Rawls liberal theory. With his vision of "deep political unity" Rawls appears to disregard *intrastate conflict* and the struggles of minorities to be heard in the national discourse. In *Political Liberalism* however, Rawls assumes that people are endowed with two moral powers, "a capacity for a sense of justice and a capacity for a conception of the good."[208] Benhabib deduces that individuals endowed with these features are likely to realize that their understanding of the good impels them to leave their society which speaks for emigration as a fundamental liberty.[209] One further inconsistency in Rawls account arises from the fact that he puts an emphasis on the recognition of pluralism across societies but does not acknowledge pluralism within societies.

Benhabib concludes as follows:

> "*The concept of a closed and complete democratic society is no more plausible than Rawls's conception of peoplehood and for much the same reason. In each case, Rawls subordinates his understanding of moral personhood to the fiction of peoplehood. There is an irresolvable tension in his formulations between the ideals of autonomous personality,[…],and that of a closed and complete society."*[210]

Given his assumption of "deep political unity" it should not come as a surprise that Rawls ascribes no particular importance to migration but believes it to be episodic and not of important value to human lives. It follows then that he conceives of migration as a phenomenon that is

[205] Rawls, "The Law of Peoples", p.38-39.
[206] Pogge, "An Egalitarian Law of Peoples.",p.199.
[207] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1766.
[208] Rawls, "The Law of Peoples", p.92.
[209] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1770.
[210] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1770.

only relevant in non-ideal theory. In fact, he assumes that in ideal theory where we can abstract from political injustice leading to political and religious persecution, human rights violations and political oppression, "the problem of immigration is not, then, simply left aside, but is eliminated as a serious problem in a realistic Utopia."[211] This ignores the myriad of other reasons people might have to migrate even within the Society of Peoples. Be it because their conception of the good will fit better to another society or because their skills and talents are in higher demand somewhere else. Especially economic considerations might be relevant because Rawls concedes that there might be substantial wealth differences even among well-ordered societies. To understand why Rawls disregards these reasons to migrate, it is instructive to analyze his conception of migration which is revealed when he argues why nations may permissibly limit immigration.

Firstly, he stipulates that there must be borders because "unless a definite agent is given responsibility for maintaining an asset and bears the loss for not doing so, that asset tends to deteriorate."[212] The agent, Rawls believes, is the people as politically organized. Against the evidence of the strong ties held up between migrants and their countries of origin as well as the important role of migration as a household strategy to mitigate income risks, Rawls states that people "cannot make up for failing to regulate their numbers or to care for their land by conquest in war, or by migrating into another people's territory without their consent.[213] He conceives of migration as an escape with no return from unproductive places to which migrants have no personal ties and commitments. The evidence of section 5.3.1 clearly rebuts such a view and shows that migrants more often than not become accelerators of political and economic development in their origin countries. Moreover, migration is a circular phenomenon. In fact, 50 percent of immigrants to Europe and 20 percent of immigrants to Western Offshoots leave these countries within 10 years.[214] But Rawls equally ignores the large positive effects of migration in receiving countries. We will turn to this in the next section.

Secondly, Rawls finds an ally in Michael Walzer and claims that the legitimate interest to "protect a people's political culture and its constitutional principles"[215]offers another reason for limiting immigration.

6.3 Why the Society of Peoples would endorse Freedom of Movement

Seyla Benhabib points out that Rawls' commitment to legitimate moral and political pluralism cannot be upheld with the assumption of democratic peoples living in closed societies.[216] She further demonstrates that a serious Rawlsian commitment to pluralism would acknowledge that

[211] Rawls, "The Law of Peoples", p.9.
[212] Rawls, "The Law of Peoples", p.39.
[213] Rawls, "The Law of Peoples", p.8.
[214] Australia, Canada, New Zealand, and the United States.
[215] Rawls, "The Law of Peoples", p.39 Supra Note 2
[216] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1774.

global interdependence and intermixture of people mandate a vision of liberal peoples with fairly open borders.[217]

She reckons:

> *"Such societies not only permit a fundamental right to emigrate, but they coexist within a system of mutual obligations and privileges, an essential component of which is the privilege to immigrate, that is, to enter another peoples' territory and become a member of its society peacefully."*[218]

I argue that the Society of Peoples would endorse at least fairly open borders. To start with, Rawls assumes that the second original position convenes parties that are "representatives of equal peoples".[219] Due to the veil of ignorance they are unaware of the specific features of the people whose interests they represent. Because they are part of the Society of Peoples they "know that reasonably favorable conditions obtain that make constitutional democracy possible" but "they do not know the extent of their natural resources, or the level of their economic development, or other such information."[220] Rawls states that the sole interest of a liberal people is that of being constituted as a just liberal society. Pogge points out that a more plausible assumption would be to state that peoples attach value to just institutions as well as the well-being of their members.[221] In other words, the delegates assume that the people they represent "other things equal, prefer to have a higher rather than a lower average standard of living."[222]This follows, Pogge argues, from the fact that individual well-being plays a significant role in the domestic original position and it would thus be incoherent to assume that this interest disappears at the international level.[223]As Pogge puts it:

> "*They [the peoples] would want her [the delegate] to consider not only how alternative proposals for a law of peoples would affect their clients' prospects to live under just domestic institutions, but also how these proposals would affect their clients' life prospects in other ways – for example through the affluence of their society."*[224]

If Pogge's claim is accepted, the representatives have strong reasons to endorse freedom of movement within the Society of Peoples. The global economic perspective makes a strong case for less restrictive migration policies. The estimated gains of complete elimination of migration barriers are in the range of 50-150 percent of world GDP.[225] But even a partial abolishment of

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[217] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1774.
[218] Benhabib, "The Law of Peoples, Distributive Justice, and Migrations", p.1774.
[219] Rawls, "The Law of Peoples", p.60.
[220] Rawls, "The Law of Peoples", p.33.
[221] Pogge, "An Egalitarian Law of Peoples.", p.208.
[222] Pogge, "An Egalitarian Law of Peoples.", p.208.
[223] Pogge, "An Egalitarian Law of Peoples.", p.210.
[224] Thomas Pogge, "An Egalitarian Law of Peoples.",p.211.
[225] Clemens, "Economics and Emigration: Trillion-Dollar Bills on the Sidewalk?", p.84

restrictions, leading to a migration rate of about 5 percent from currently 3.4 percent would outnumber the growth effects of total liberalization of merchandise trade or capital flows.[226]

Stephen Macedo has countered that migration needs to be restricted because of its negative impact on wages and employment among the working class.[227] The Society of Peoples could thus be inclined to restrict migration because of the economic harm inflicted on subgroups. Is this concern legitimate?

The McKinsey Global Institute assessed 40 empirical studies covering a period from 1960 to 2010 and various destination countries. They conclude that migration has a limited impact on native employment and wages, but short-term negative effects after a large influx of migrants are possible.[228] Another study argues that migrants bring along different skill sets and cultural norms leading to enhanced specialization and distinction and hence pushed native wages by 1 to 2 percent between 1990 and 2004 in the United States.[229] Moreover, researchers scrutinized the effects of immigration to the United Kingdom between 1995 and 2015 and found no evidence for downward pressure on wages in communities hosting the largest numbers of migrants.[230] Lastly, the average wage effect of migration in Germany and France between 1990 and 2000 has been estimated to be slightly positive.[231]

The cited findings present average outcomes and hence obscure the multifaceted effects on subgroups. The magnitude of wage effects depends on the complementarity of skills held by the migrants with those of the domestic labor force. At large, the distribution of skills among migrants appears to be bipolar. On the one hand, there are highly specialized professionals constituting about one third of scientists, engineers or professors in countries like Switzerland, United Kingdom and Canada.[232] Around 35 percent of migrants are highly skilled migrants with tertiary education or above.[233] In destination countries, this has contributed to keeping costs for healthcare and education down. It is especially in these countries along with Australia and the United States that migrants have also disproportionately contributed to innovation and entrepreneurship.[234] As a result, instead of taking jobs away, these migrants often start their own businesses and thereby raise demand for labor.

On the other hand, a large number of migrants offer their workforce in construction, agriculture, low-skilled manufacturing or domestic work inducing downward pressure on wages in these

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[226] Clemens, "Economics and Emigration: Trillion-Dollar Bills on the Sidewalk?", p.84

[227] Macedo, Stephen. "The Moral Dilemma of U.S. Immigration Policy." In *Debating Immigration*, by Carol M. Swain, 63-81. New York: Cambridge University Press, 2007.

[228] McKinsey Global Institute, “People on the Move: Global Migration's Impact and Opportunity”, p.66/67.

[229] See Peri, Giovanni. "The effect of immigration on productivity: Evidence from US states." *Review of Economics and Statistics*, February 2012.

[230] McKinsey Global Institute, “People on the Move: Global Migration's Impact and Opportunity”, p.67.

[231] McKinsey Global Institute, “People on the Move: Global Migration's Impact and Opportunity”, p.73.

[232] World Bank Group, ”Migration and Development”, p.21.

[233] McKinsey Global Institute, “People on the Move: Global Migration's Impact and Opportunity”, p.1.

[234] World Bank Group, ”Migration and Development”, p.22.

sectors.[235] It is assumed that native workers hold advantages in local experience and language proficiency and hence complement most low-skilled migrants. Moreover, increased investment in education and training is a general response by the domestic workforce to cope with increased competition.[236] Notwithstanding, especially earlier migrants and uneducated nationals with limited skill sets might very well be negatively affected by an increase in migration. However, it is important to bear in mind that wage effects need to be weighed against the overall effects on economic growth and consumer prices to assess the welfare impact.

In summary, the effects of migration on wages are complex and highly context-dependent. On average migration appears to do little harm to a country's unemployment rate and wages. This is mostly since immigrants and natives, given their different skill sets, are generally not perfect substitutes.[237] Nevertheless, some people at the lower ends of the skills distribution might be affected. Additionally, immigration almost certainly benefits highly qualified employees and capital owners more than the average blue-collar worker. It is important to highlight though, that the effects of technological innovation and digitization, as well as free trade and offshoring are certainly more influential determinants in explaining both, wage pressure on low-qualified workers and widening income gaps.[238] This reveals that the vulnerability of poorer native citizens is a symptom of the domestic institutional setting. Cole expresses his discomfort with Macedo's claim aptly when he points out that his argument runs like this:

> "*The worst off in our political community are in that position because they are disadvantaged by an exploitative economic arrangement; admitting more migrants under this exploitative economic arrangement would make this group worse off than they already are; therefore we must not admit more migrants.*"[239]

But even if we assume that the peoples are not concerned with their affluence but only with the justice of their own domestic institutions we have strong reasons to believe they would favor a more egalitarian law of peoples. Rawls believes that well-ordered societies need not be wealthy societies.[240] This implies that there might be vast disparities in terms of economic development and living standards with unfavorable consequences.

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[235] See Borjas, George. "Immigration and Welfare: A Review of the Evidence." In *The Debate in the United States over Immigration*, by Peter Duigna and Lewis Gann, 121-144. Stanford: Hoover Institution Press, 1998.

[236] Somerville, Will, and Madeleine Sumption. *Immigration and the labour market: Theory, evidence and policy.* Migration Policy Institute, 2009.Here:p.22.

[237] Somerville and Sumption, "Immigration and the labour market: Theory, evidence and policy", p.22.

[238] Somerville and Sumption, "Immigration and the labour market: Theory, evidence and policy", p.30.

[239] Cole, "Open Borders: An Ethical Defense", p.264.

[240] Rawls, "The Law of Peoples", p.106.

As Pogge suggests:

> "*In a world with large international inequalities, the domestic institutions of the poorer societies are vulnerable to being corrupted by powerful political and economic interests abroad.*"[241]

Given the substantial power imbalance, Pogge mentions the harmful interference of multinational corporations and politicians on internal affairs of poorer countries. I believe this gives reason to plead for less restrictive migration policies for two reasons. Firstly, because of its positive economic and political effects on countries of origin and secondly because it allows migrants to report about injustice inflicted on their countries of origin in receiving countries.

Still problematic for my argument is the fact that this only represents a defense of freedom of movement among the *well-ordered societies*. Many of the countries exhibiting high migration pressure would most likely be identified as *outlaw states* or *burdened societies* by Rawls. To see why there would also be strong reasons for changes in migration policy towards these societies, I refer to Rex Martin who points out that the *duty to assist* in Rawls' account is way more substantial than often assumed.[242] Martin reminds that a serious commitment to the human right to subsistence necessitates great effort on the side of well-ordered societies to provide "unpolluted air, unpolluted water, adequate food, adequate shelter, minimal preventive public health care".[243] Moreover, to allow *burdened societies* to become well-ordered and self-supporting decent societies, there is a duty to provide investments in education and literacy as well as the economic infrastructure. But beyond mere resource transfer Martin identifies a duty to execute structural changes "in the financial and economic environment in which formerly burdened societies interact with wealthier and more technologically advanced societies"[244]. I conclude that we need not presuppose a demanding global egalitarian principle to argue for substantial reforms regarding trade policy, international law, taxation, development aid and migration policy.

7. Towards a Fair Scheme of Migration

I have aimed to point out that all four liberal egalitarian theories (Global Egalitarianism, Relational Egalitarianism, Global Sufficientarianism and Liberal Nationalism) I introduced should endorse a right to freedom of movement to be coherent with the basic values of liberal egalitarianism, namely individual autonomy, moral equality, and personal responsibility. But this right does not follow from an absolute and overarching principle of freedom of movement.

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[241] Pogge, "An Egalitarian Law of Peoples.",p.213.

[242] Rex, Martin. "Rawls on International Distributive Economic Justice: Taking a Closer Look." In *Rawls's Law of Peoples*, by Martin Rex and David A. Reidy, 226-242. Blackwell Publishing Ltd, 2006.

[243] Rex, "Rawls on International Distributive Economic Justice: Taking a Closer Look."p.237 quoting Henry Shue.

[244] Rex, "Rawls on International Distributive Economic Justice: Taking a Closer Look."p.238.

As I pointed out in *Section 4*, the right to freedom of movement can only be a prima-facie right which can be restricted if it risks bearing harmful consequences on others. In the same time, borders and state discretion need not be morally objectionable if they result from universally justifiable reasoning rather than communitarian conceptions of membership. Accordingly, I have argued, we need to embed migration into a broader scheme of global justice striking a balance between universally justifiable migration restrictions, a presumptive right to freedom of movement and the significant distributive effects of migration under current conditions. This has led to the discussion of the appropriate scope and contents of justice in liberal egalitarianism. While *liberal cosmopolitanism* (Section 5) conceives of individual human beings as the primary focus of justice, Rawls *liberal nationalism* (Section 6) takes politically organized peoples as the relevant actors on the global sphere. The discussions of *Global Egalitarianism* (Section 5.1 and 5.2), *Relational Egalitarianism* (Section 5.2) and *Global Sufficientarianism* (Section 5.3) have informed my view on migration.

We saw that the global egalitarian account developed by Joseph Carens made a strong argument for open borders in the absence of reasonable *public order restrictions*. An examination of the concerns related with security and welfare systems showed that the empirical basis for these arguments is rather weak. In contrast, overpopulation appears to fulfill the public order restriction and thus calls at least for temporary migration restrictions. The inherent luck egalitarian intuition makes global egalitarianism appealing because it reminds that differences in income and wealth unexplained by individual choices and effort appear ethically objectionable. In the discussion of luck egalitarianism, I inferred that relational egalitarianism demands from us to be concerned with inequalities that cause domination and oppression. It follows then that we should not only be concerned with the distribution of goods itself but with the way how this distribution arises. Accordingly, transferring wealth and goods to discharge egalitarian duties instead of reforming trade, taxation and migration policies is impermissible. Finally, global sufficientarianism warned us about the potentially harmful effects of less restrictive migration policies on the globally worst-off remaining in countries of origin. I concluded that a well-informed liberal cosmopolitanism needs to endorse a global right to freedom of movement to be coherent. However, to be valid, these arguments need to conceive of the global sphere as the primary and most relevant context of justice. Objections to this hold that a context of justice only accrues from an institutionalized and beneficial scheme of cooperation which allows to identify distributable goods, claims of justice and addressees of these.[245] John Rawls' *Law of Peoples* exemplifies this approach when it models the original position as a two-stage process. The representatives of well-ordered peoples, first and most importantly, determine principles of justice for the domestic context before they turn to the international sphere.

[245] Forst, Towards a Critical Theory of Transnational Justice, p.161.

I argue against the two-tiered international perspective of the original position because it must either take a stance of political realism or it needs to make implausible assumptions about peoples (nation states) as being autonomous and unified by a common moral nature. Moreover, it rests on the implausible assumptions of *explanatory nationalism* which, as I argued in Section 6.1, cannot be upheld against the background of an economically and politically highly interdependent global structure. Rainer Forst points out, that besides a "global context of trade, there is now also a global context of production and of labor, and important actors in those spheres are to be characterized as 'transnational'.[246] He further identifies a *global ecological context* as well as a *global context of institutions* and concludes that "in the contemporary world the degree of globalized interdependence has reached a point where it is impossible not to speak of this context as one of justice[:...].[247]

On the other hand, he points out that "it seems beyond doubt that a domestic context of justice is marked by a degree of institutionalized (and noninstitutionalized) social cooperation that is not equaled on the global level – neither in the political, legal, economic, nor cultural respects."[248] I subscribe to this view because it is implausible to infer, as Beitz does, that *some global basic structure* suffices to justify egalitarian duties as demanding as those on the national level. It seems that *Liberal Cosmopolitanism* has the tendency to neglect the relevance of political communities in our current world order. While rightly pointing out their historical contingencies and complicity in entrenching undeserved inequalities, it seems to me that they are too quick in brushing aside the political and allocative functions of nation states.

Rainer Forst offers a convincing description of the global order that avoids the bipolarity of the distinction between Liberal Nationalism and Liberal Cosmopolitanism. He argues as follows, when he explains why he sees the global sphere as a "context of force and domination":

> "*[…] once one takes the history and concrete character of these multiple relations into account, it is a euphemism to refer to them as 'cooperation' or 'interdependence' without further qualification, since such terms imply relations of reciprocity that are obviously absent. Rather what emerges is a complex system of one-sided and largely coerced cooperation and dependency rather than interdependence."*[249]

Forst further points out, that the global context is "one of a complex system of power and domination with a variety of powerful actors, from international institutions to transnational corporations, local elites, and so forth."[250] His observations are convincing because they rightly stress that there are numerous, mostly overlapping and causally related contexts of justice in the global sphere. Consequently, dominated individuals are exposed to multiple sources of

[246] Forst, Towards a Critical Theory of Transnational Justice, p.165.
[247] Forst, Towards a Critical Theory of Transnational Justice, p.165.
[248] Forst, Towards a Critical Theory of Transnational Justice, p.165.
[249] Forst, Towards a Critical Theory of Transnational Justice, p.166
[250] Forst, Towards a Critical Theory of Transnational Justice, p.166

domination. Regarding justice in migration, Forst points out two very relevant aspects. Firstly, in accordance with my reading of relational egalitarianism, a critical theory of transnational justice highlights that it does not suffice to respond to poverty and inequality arising from a system of domination with mere resource transfers.[251] As Forst puts it, this appreciation "stresses the need for a theory that does not just focus on the justice of the distribution of goods, but on the justice of the 'basic structure' of relations of political and economic power, that is, relations of government, of production, and of distribution."[252] Secondly, he points out that both, distributive justice and political justice, as freedom from unjustified domination are not distinctive issues but are guided by "the overarching *principle of the justification of justice"*.[253] Forst infers from this principle that "all social relations to which one is subject to and that can be changed by political action are to be justified reciprocally and generally to all those affected in a relevant way – be they economic relations or relations of political authority."[254] Moreover, Forst states, that a critical theory regards no social relations as "beyond justification and its critique is directed against all those institutions, rules or practices which either pretend to be justified without being so or appear to be beyond justification in terms of being either natural or unchangeable." [255]

These criteria present a sensible reading of the requirements of moral universalism and offer strong grounds to reject current migration policies. Admission to wealthy liberal democracies is to large extents contingent on positive economic contributions of would-be immigrants. As a result, it is mostly only the most skilled and educated who get to migrate. For reasons I have laid out in Section 5.3, I believe that the empirical evidence for the so-called *Brain Drain* phenomenon is not strong enough to justify restrictions of skilled emigration. Moreover, I have argued that the right answer to these concerns should be an endorsement of more rather than less porous borders. In fact, if we assume the existence of a harmful *Brain Drain*, then the current system appears to be highly complicit in it. A large majority of people willing to migrate with the aim of improving their lives are hindered by a very restrictive system. In combination with high and ever-increasing migration pressure, this has resulted in large numbers of peoples trying to move to wealthy democracies irregularly. This does not only entail fatal casualties at the borders of the United States and Europe but makes irregular migrants victims of human rights abuse and exploitation. Moreover, this has led to a generally negative perception of migrants in receiving countries. Given the high costs for international transportation, visa and passport fees, smuggling and hiring costs, the poorest are less likely to be involved in international migration.

[251] Forst, Towards a Critical Theory of Transnational Justice, p.167
[252] Forst, Towards a Critical Theory of Transnational Justice, p.167/168
[253] Forst, Towards a Critical Theory of Transnational Justice, p.168
[254] Forst, Towards a Critical Theory of Transnational Justice, p.168
[255] Forst, Towards a Critical Theory of Transnational Justice, p.168.

In summary, I subscribe to Phillip Cole's view who puts it as follows:

> "*There is a hierarchy of power when it comes to international movement, with the global poor largely immobile at the bottom. Of course, simply declaring a universal right to freedom of international movement may do little to change that, which again shows that it has to be embedded in a wider approach to issues of global inequality and injustice in which it could play a valuable role.*"[256]

There are then two major reasons to endorse global freedom of movement in a liberal egalitarian reading of justice in migration:

1. The importance of freedom of movement in liberal theory.
2. The proviso of altering social structures that entrench inequality instead of simply transferring resources.

Throughout this work I considered numerous alleged justifications for the current system. I have offered reasons why some of them, such as those related to the economies of receiving countries or those related to the potential harm of migration on the poorest in countries of origin are unconvincing justifications. I showed that the public order restriction, introduced by Rawls and applied to questions of migration by Joseph Carens is not fulfilled by security or welfare concerns. It is likely to be fulfilled however, by the sheer demand of people willing to migrate. This appears to be the case because migration represents an issue of transitional justice. In turn, states might be temporarily justified to limit migration if not doing so destroys their just public order. But this does not alter the duty to justify these policies to those affected by them.

This leads me to the claim that there can be no unilateral right to control admission on the site of states because a system of states being solely in charge of their migration policies produces significant hardships. Therefore, to be coherent, liberal egalitarianism needs to speak out for a global governance approach to migration. It follows then, that states may have some rights to restrict migration but these can only be delegated rights.[257] It is important to note, that these permissible restrictions cannot be related to concerns about a country's unique culture or the protection of mere economic interests. Justifiable restrictions are necessarily associated with the functioning of the political body or direct harm inflicted on others. Generally, in this global migration regime, freedom of movement would serve as the norm and deviations from it would need to be justified to all those affected by them on impartial grounds. This also means that restrictions of freedom of movement would need to be based on robust empirical evidence that limiting migration is both necessary and sufficient to secure the good in question. As an example, if there was hard evidence for a harmful *Brain Drain* effect, this would not justify restrictions of migration but a compensation scheme which would mandate wealthy countries

[256] Cole, "Open Borders: An Ethical Defense", p.299.
[257] Cole, "Open Borders: An Ethical Defense", p.164/165.

to compensate developing countries for their educational expenses and to invest in further training programmes.

It is important to recall here that we are concerned with admission to a country's territory and labor market in the first place. Certainly, this needs to be accompanied with crucial social and political rights, but citizenship is a more complex matter. Therefore, political philosophy faces the challenge to develop new forms of membership which transcend nation-states and allow to allocate different components of citizenship, like political, social and civil rights separately. This would represent great advances to the current bipolarity of members and non-members in the international sphere.[258]Nevertheless, I do not believe we would have to wait for these new forms of membership to evolve, because as Phillip Cole rightly points out:

> "*What we should notice is actually how little is involved in changing the nature of borders. The fact is that the vast majority of political boundaries in the world do not entail a right of exclusion. We tend to think of boundaries around political communities in terms of national borders, but most political boundaries are not like that at all. We are surrounded by an enormous range and number of open but democratic political bodies with boundaries that mark out membership and territory. Any liberal democratic state consists of a hierarchy of political bodies with porous boundaries, for which membership is determined by voluntary settlement.*"[259]

[258] Cole, "Open Borders: An Ethical Defense", p.301.
[259] Cole, "Open Borders: An Ethical Defense", p.302.

List of References

Abizadeh, Arash. "Liberal Egalitarian Arguments for Closed Borders: Some Preliminary Critical Reflections." *Ethics and Economics*, 2006: 1-8.

—. "Democratic Theory and Border Coercion." *Political Theory*, 2008: 37-65.

Acosta, P.A., C. Calderon, P. Fajnzylber, and H. Lopez. "What is the Impact of International Remittances on Poverty and Inequality in Latin America?" *World Development*, 2008: 89-114.

Adams, R.H., and J. Page. "Do international migration and remittances reduce poverty in developing countries?" *World Development*, 2005: 1645-1669.

Anderson, Elizabeth S. "What is the Point of Equality?" *Ethics*, January 1999: 287-337.

Barsbai, T., H. Rapoport, A. Steinmayr, and C. Trebesch. "The Effect of Labor Migration on the Diffusion of Democracy: Evidence from a Former Soviet Republic." *CEPII Working Paper*, September 26, 2016: 1-59.

Batista, Catia, and Pedro C. Vicente. "Do Migrants Improve Governance at Home? Evidence from a Voting Experiment." *The World Bank Economic Review*, 2011: 77-104.

Beitz, Charles. *Political Theory and International Relations.* New Jersey: Princeton University Press, 1979.

Bell, Brian. "Crime and immigration." *IZA World of Labor*, 2014: 1-10.

Benhabib, Seyla. "The Law of Peoples, Distributive Justice, and Migrations." *Fordham Law Review*, Vol.72 2004: 1761-1787.

Bhugra, D, and Becker MA. "Migration, cultural bereavement and cultural identity." *World Psychiatry*, February 4(1), 2005: 18-24.

Bianchi, Milo, and Paolo Buonanno. "Do Immigrants cause Crime?" *Journal of the European Economic Association*, August 8, 2012: 1318-1347.

Blake, Michael. "Distributive Justice, State Coercion, and Autonomy." *Philosophy and Public Affairs*, 2001: 257-296.

Borjas, George. "Immigration and Welfare: A Review of the Evidence." In *The Debate in the United States over Immigration*, by Peter Duigna and Lewis Gann, 121-144. Stanford: Hoover Institution Press, 1998.

Brock, Gillian. "Immigration and Global Justice: What kinds of policies should a Cosmopolitan support?" *Ethics&Politics*, 2010: 362-376.

—. *Global Justice- A Cosmopolitan Account.* New York: Oxford University Press, 2009.

—. "Contemporary Cosmopolitanism: Some Current Issues." *Philosophy Compass*, 2013: 689-698.

Brock, Gillian. "The Original Position in the Law of Peoples." In *The Original Position*, by Timothy Hinton, 247-265. Cambridge: Cambridge University Press, 2015.

Cappelen, Alexander W., and Bertil Tungodden. "A Liberal Egalitarian Paradox." *Economics & Philosophy*, November 2006: 393-408.

Carens, Joseph. "Immigration and Citizenship." In *Values and Ethics for the 21st Century*, by BBVA, 103-136. BBVA, 2011.

—. "Aliens and Citizens: The Case for Open Borders." *The Review of Politics*, Spring 1987: 251-273.

Castles, Stephen, and Mark Miller. *The Age of Migration.* Basingstoke: Palgrave, 2003.

Clemens, Michael. "Skill Flow: A Fundamental Reconsideration of Skilled-Worker Mobility and Development." *CGD Working Paper*, August 2009: 1-47.

—. *Do Immigrants Fill Public Coffers, or Drain Them? We Finally Have an Authoritative Estimate.* 08 26, 2013. https://www.cgdev.org/blog/do-immigrants-fill-public-coffers-or-drain-them-we-finally-have-authoritative-estimate (accessed 03 16, 2018).

—. "Economics and Emigration: Trillion-Dollar Bills on the Sidewalk?" *Journal of Economic Perspectives*, 2011: 83-106.

Clemens, Michael, and Timothy Ogden. "Migration as a Strategy for Household Finance: A Research Agenda on Remittances, Payments, and Development." *CGD Working Paper*, February 2014: 1-39.

Cohen, Joshua, and Charles Sabel. "Extra Rempublicam Nulla Justitia?" *Philosophy& Public Affairs*, Spring 2006: 147-175.

Cole, Phillip. "Open Borders: An Ethical Defense." In *Debating the Ethics of Immigration - Is There A Right to Exclude?*, by Christopher Heath Wellman and Phillip Cole, 159-313. Oxford: Oxford University Press, 2011.

Cole, Phillip. "The right to leave versus a duty to remain: Health care workers and the 'brain drain'." In *The International Migration of Health Workers*, by R. Shah, 118-129. Palgrave Macmillan, 2010.

Danish Institute for International Studies. "European's Refugee Crisis and the Threat of Terrorism - An Extraordinary Threat?" May 2017. http://pure.diis.dk/ws/files/910914/Report_05_Europes_Refugee_Crisis_Web.pdf (accessed 03 12, 2018).

De Haas, Hein. "Migration and Development: A Theoretical Perspective." *International Migration Review*, March 5, 2010: 227-264.

De Haas, Hein. *Remittances, Migration and Development: Policy Options and Development: Policy Options and Policy Illusions.* n.d.

Docquier, F., E. Lodigiani, H. Rapoport, and M. Schiff. "Emigration and the quality of home country institutions." *IRES*, September 2010: 1-47.

Dumont, Jean-Christophe. *Can I get the bill,please?* 07 30, 2013. http://blogs.worldbank.org/peoplemove/can-i-get-bill-please (accessed 03 21, 2018).

Fine, Sarah. "Freedom of Association is Not the Answer." *Ethics*, January 2010: 338-356.

Forst, Rainer. "Towards a Critical Theory of Transnational Justice." *Metaphilosophy*, January 2001: 160-179.

Goodin, Robert E. *Protecting the Vulnerable: A Re-Analysis of our Social Responsibilities.* Chicago: University of Chicago Press, 1985.

Hayter, Teresa. *Open Borders: The Case against Immigration Controls.* London: Pluto Press, 2000.

Hirschman, Albert O. *Exit, Voice, and Loyalty.* Cambridge: Harvard University Press, 1970.

Kapur, Devesh. "Remittances: The new development mantra?" In *Development Impact and Future Prospects*, by Samuel Munzele Mainbo and Dilip Ratha. Washington D.C.: World Bank, 2005.

Koechlin, Valerie, and Gianmarco Leon. "International Remittances and Income Inequality: An Empirical Investigation." *Journal of Economic Policy Reform*, October 2007: 123-141.

Kukathas, Chandran. "The Case for Open Migration." In *Contemporary Debates in Applied Ethics*, by Andrew I. Cohen and Christopher Heath Wellman, 207-220. Oxford: Blackwell Publishing, 2005.

Le Grand, Julien. *Equity and Choice: An Essay on Economics and Applied Philosophy.* London: HarperCollins, 1991.

Macedo, Stephen. "The Moral Dilemma of U.S. Immigration Policy." In *Debating Immigration*, by Carol M. Swain, 63-81. New York: Cambridge University Press, 2007.

McKinsey Global Institute. *People on the Move: Global Migration's Impact and Opportunity.* 2016.

Milanovic, Branko. "Global Inequality of Opportunity: How Much of our Income is Determined by Where We Live?" *The Review of Economics and Statistics*, February 2015: 452-460.

Miller, David. "Immigration : The Case for Limits." In *Contemporary Debates in Applied Ethics*, by Andrew I. Cohen and Christopher Heath Wellman, 193-207. Oxford: Blackwell Publishing, 2005.

—. "Nations and Citizenship." *The Journal of Political Philosophy*, 2008: 371-390.

Ministry of Justice. "Statistics on Race and the Criminal Justice System 2008/2009." June 2010. https://www.gov.uk/government/uploads/system/uploads/attachment_data/file/217822/stats-race-and-the-criminal-justice-system-2008-09c1.pdf (accessed 03 19, 2018).

New America. "Terrorism in America After 9/11." n.d. https://www.newamerica.org/in-depth/terrorism-in-america/who-are-terrorists/ (accessed 03 15, 2018).

Oberman, Kieran. "Poverty and Immigration Policy." *American Political Science Review*, May 2015: 239-251.

OECD. "International Migration Outlook 2013." 2013. http://dx.doi.org/10.1787/migr_outlook-2013-en (accessed 03 15, 2018).

O'Neill, Onora. *Bounds of Justice.* Cambridge: Cambridge University Press, 2000.

Ousey, Graham C., and Charis E. Kubrin. "Immigration and Crime: Assessing a Contentious Issue." *Annual Review of Criminology*, June 27, 2018: 63-84.

Peri, Giovanni. "The effect of immigration on productivity: Evidence from US states." *Review of Economics and Statistics*, February 2012.

Pevnick, Ryan. "Social Trust and the Ethics of Immigration Policy." *The Journal of Political Philosophy*, 2009: 146-147.

Pogge, Thomas. "Migration and Poverty." In *Citizenship and Exclusion*, by Veit Bader, 12-27. Palgrave Macmillan, 1997.

—. "An Egalitarian Law of Peoples." *Philosophy and Public Affairs*, 1994: 195-224.

—. *World Poverty and Human Rights.* Polity, 2008.

Ratha, Dilip, Sanket Mohapatra, and Elina Scheja. "Impact of migration on social and economic development: A review of evidence and emerging issues." *Policy Research Working Paper*, February 2011.

Rawls, John. *A Theory of Justice.* Harvard University Press, 1971.

—. *Political Liberalism.* Columbia University Press, 1993.

—. *The Law of Peoples with "The Idea of Public Reason Revisited".* Cambridge: Harvard University Press, 1999.

Rex, Martin. "Rawls on International Distributive Economic Justice: Taking a Closer Look." In *Rawls's Law of Peoples*, by Martin Rex and David A. Reidy, 226-242. Blackwell Publishing Ltd, 2006.

Sandefur, Justin. *Migration and Development: Who Bears the Burden of Proof?* March 19, 2014. http://oxfamblogs.org/fp2p/migration-and-development-who-bears-the-burden-of-proof-justin-sandefur-replies-to-paul-collier-2/ (accessed 03 22, 2018).

Schaber, Peter. "Migration und globale Armut." In *Bürgerschaft und Migration*, by S. Zurbuchen, 149-164. Münster: Litt Verlag, 2007.

Schlothfeldt, Stephan. "Ökonomische Migration und Verteilungsgerechtigkeit." In *Was schulden wir Flüchtlingen und Migranten?`*, by A. Märker and Stephan Schlothfeldt, 93-109. SpringerVS, 2002.

Seglow, Jonathan. "Immigration and Global Justice." *Royal Holloway Department of Politics and International Relations Working Paper Series*, April 1, 2006: 1-12.

Somerville, Will, and Madeleine Sumption. *Immigration and the labour market: Theory, evidence and policy.* Migration Policy Institute, 2009.

Stark, Oded, Edward Taylor, and Shlomo Yitzhaki. "Remittances and Inequality." *Economic Journal*, 1986: 722-740.

UNDP. "Human Development Report 2015." 2015. http://hdr.undp.org/sites/default/files/2015_human_development_report_1.pdf (accessed 03 13, 2018).

UNICEF. "Annual Report 2015." 2015. https://www.unicef.org/publications/files/UNICEF_Annual_Report_2015_En.pdf (accessed 03 14, 2018).

United Nations. "International Migration Report." 2017. http://www.un.org/en/development/desa/population/migration/publications/migrationreport/docs/MigrationReport2017_Highlights.pdf (accessed 03 20, 2018).

USAID. *The Health Sector Human Resource Crisis in Africa: An Issues Paper.* 2003.

Walzer, Michael. *Spheres of Justice.* New York, 1983.

Wellman, Christopher. "Freedom Of Association And The Right To Exclude." In *Debating the Ethics of Immigration - Is There A Right To Exclude?*, by Christopher Wellman and Philipp Cole, 13-155. Oxford University Press, 2011.

Wellman, Christopher, and Phillip Cole. *Debating the Ethics of Immigration.* Oxford University Press, 2011.

Whelan, Frederick. "Citizenship and the Right to Leave." *American Political Science Review*, September 1981: 636-653.

Wilcox, Shelley. "The Open Borders Debate on Immigration." *Philosophy Compass*, 2009: 1-9.

World Bank Group. *Migration and Development.* Washington D.C.: World Bank Group, 2016.

World Bank Group. *Migration and Remittances.* Washington D.C., April 2017.

Ypi, Lea. "Justice in Migration: A Closed Borders Utopia?" *The Journal of Political Philosophy*, November 18, 2008: 391-418.

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